4 Development in Residential Areas

4.1 Residential Flat Buildings in R1 Zone

4.1.1 Introduction

This section applies to residential flat buildings that are permitted with consent in the R1 General Residential zone in the BLEP 2012. A residential flat building means a building containing three or more dwellings, but does not include an attached dwelling or multi dwelling housing. The development standards applying to land in the R1 zone permit different scales of residential flat buildings in different locations.

The provisions of State Environmental Planning Policy No. 65 - Design Quality of Residential Apartment Development (SEPP 65) and the accompanying ADG will apply. As well as this DCP section, applicants should have regard to these documents when preparing their development proposal. In the event of an inconsistency between the ADG and a provision within this DCP, the DCP will prevail to the extent of that inconsistency.

Some shop top housing (defined as one or more dwellings located above ground floor retail premises or business premises) in residential zones will be assessed in the same manner as residential flat buildings. This is outlined in Section 4.2 below.

Appendix 3 of the ADG specifies the submission requirements that Council will apply for residential flat buildings. A Registered Architect must design a residential flat building. Before determining an application, Council may obtain independent advice on the design quality of the residential flat building relative to the principles outlined in SEPP 65, and also the provisions within the ADG and this section of the DCP.

The provisions within this section of the DCP address the three key aspects of planning and design for residential flat development and shop top housing being:

- Site Planning – how buildings responds to the site, neighbours and streetscape with provisions creating a basic building envelope.
- Building Design–the aesthetic and functionality of building facades with provisions refining the building envelope.
- Site and Building Amenity–provisions for internal and external building amenity with provisions addressing the finer details of the building.

4.1.2 Development Controls

Site Planning

Objectives

O1 To ensure new development responds to its context (e.g. streetscape and adjoining properties) and site elements (e.g. landscaping and services).

O2 To ensure new development provides appropriate levels of amenity for the private and public domain.

O3 To ensure the street setback enhances the setting of the building, and that side and rear setbacks create usable land for landscaping and maintain amenity between neighbouring sites.

O4 To encourage the efficient use of land.

Provisions

Height and Floor Space Ratio

P1 The development standards in the BLEP 2012 apply.

Setbacks

P2 The front setback of a building is to be a minimum of 6m, 50% of which must be landscaped.

Retain and protect existing trees above 10m tall within the 10m of property boundaries. Adjust building façade alignments accordingly. AS 4970:2025 Protection of trees on development sites, requirements would apply.

No basement is permitted under the front setback to allow growth of mature trees.
A minimum of 1.2m and preferably 1.5m depth of two horizon growing medium and drainage from top of slab to finished surface where basement parking under the front setback cannot be avoided.

Private landscape areas at the property boundary must be designed to match the adjoining street levels. Retaining walls along the street frontage must not exceed 800mm in height.
On sloping streets, the front setbacks may be terraced down along the street frontage, provided that no individual wall exceeds 800mm in height.

The contiguous landscape area must not be divided by retaining walls running parallel to the property boundary.

P3 Side and rear setbacks must comply with the following numerical standards:

Building Component	Minimum Setback from Side and Rear Boundaries
Ground floor	2.0 metres
First floor	3.5 metres
Second floor	5.0 metres and comply with ADG building separation requirements
Third floor and above	1.0 metres additional per floor above second floor and comply with ADG building separation requirements

P3A Notwithstanding P3, where a side or rear boundary is contiguous with a heritage property the minimum setback is 5m for the building at or above ground level, and 4m for any underground excavation, irrespective of the setback of the heritage building from its boundary or landscaping of that setback. Fire stairs pump rooms or similar structures are not permitted in the setback area.

Development of a residential flat building adjacent to a heritage item should also have regard to the character of the heritage property, such as responding to its landscaping, front fence, character, generous setbacks, open front yard, and the like.

P4 Setback areas must be free of projections or encroachments, except for at-grade landscaping, to protect the amenity and privacy of adjoining properties and streetscape.

Length of Building Facades

P5 The maximum frontage length of a building facing a street is 45 metres. The front facades of buildings are to include articulation elements at least every 5 metres.

P6 The side façades of buildings are to include articulation elements at least every 10 metres.

P7 Breaks between buildings are to be aligned with streets, lanes or regional views where possible.

Minimum Site Frontage

P8 A residential flat building shall not be erected on an allotment of land having a frontage of less than 20 metres.

P9 Site consolidation is encouraged to promote efficient use of land.

Minimum Site Area

P10 Any development with a height over 9 metres is generally required to have a minimum site area of 500 square metres.

P11 Council will only consider a development with a minimum site area below 500 square metres where the Council is satisfied that:

- The development demonstrates design excellence.
- The development provides a good response to the streetscape and surrounding development (in terms of both existing and future development).
- The development provides full compliance with parking requirements without the use of automated or mechanical car parking systems.

Site Isolation

P12 The creation of isolated sites (i.e. with less than 20 metre frontage) is discouraged. Where an isolated site may result, the applicant for a development must demonstrate that negotiations between the owners of the property(s) commenced at an early stage that was prior to the lodgement of the Development Application. Where no satisfactory result is achieved, the Development Application must indicate that negotiations included genuine offers based on at least one recent independent valuation and included reasonable expenses likely to be incurred by the owners in the sale of the property(s).

P13 Where a development may result in the creation of an isolated site the applicant must demonstrate that orderly and economic use and development of the separate sites can be achieved that is consistent with the planning controls. Such demonstration is achieved by the applicant providing a building envelope for that site, indicating height, setbacks, resultant site coverage and/or built area (building and basement), sufficient to understand the relationship between the development and that site, the likely impacts the developments will have on each other, impacts on solar access, visual and acoustic privacy, and the character of the streetscape, and traffic impacts if that site is on a main road.

Building Design

Objective

O1 To ensure the appearance of new development defines and enhances the public domain through modulation, articulation, materials, use of superior external materials and finishes, active ground floor uses and sensitivity to heritage items and conservation areas.

Provisions

Building Facades and General Guidelines

P1 Each street façade must be articulated into smaller components using building elements (materials, floor slabs, balconies, window and door elements, roof forms and the like) at a scale or grain that reflects the use of the building and its components its location relative to public domain elements and has a clearly defined top, middle and bottom.

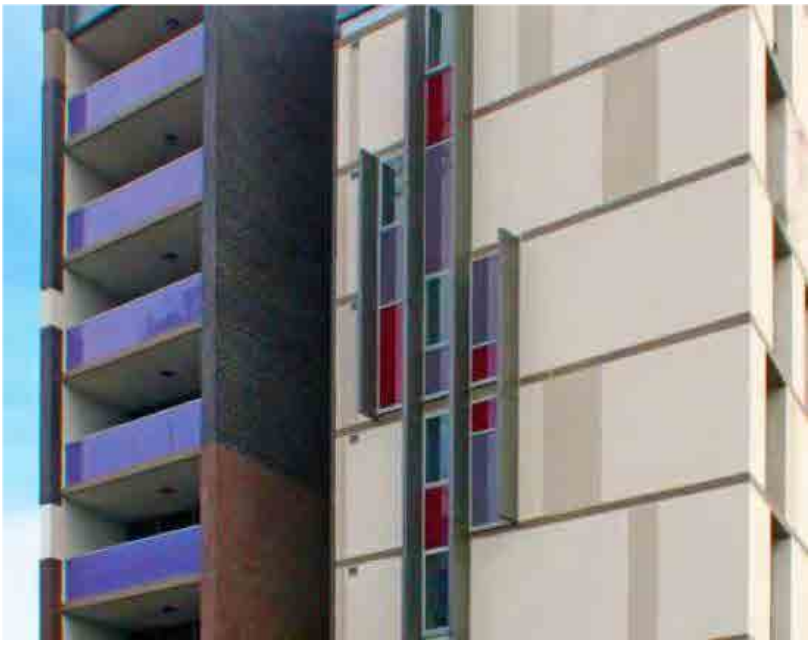
P2 Predominant scale, rhythm and modulation of the existing streetscape are to be used as a baseline to break the new facade into smaller and finer elements. Vertical planes are encouraged over horizontal planes.

P3 Façade modulation/ articulation should reflect the key datum lines of the adjacent heritage or local contributory items.

P4 Uninterrupted blank wall is to be avoided in all visible parts of the façade from the public domain or adjacent neighbourhood.

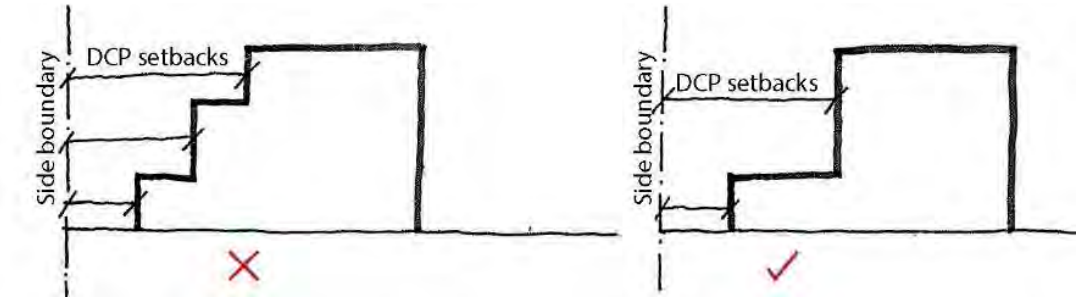
Blank wall should demonstrate visual interest through articulation of material and incorporation of temporary or permanent public art installations created by local artists, integrated with the overall façade design.

This shall be in accordance with the requirements of the *Burwood Public Art Guideline for Developers.*



Modulation and articulation of the blank wall to enhance the visual character of the building.
Source: ADG, 4M

P5 A simplified response to the BDCP required side and rear setbacks and separation distances is encouraged.



P6 Front and rear façades are to include 60% - 70% windows and balconies of habitable rooms.

P7 A minimum of 30% - 50% of side façades should include windows and balconies of habitable rooms. Where building separation distances are less than the ADG guidelines, features are encouraged to redirect views to avoid adverse privacy impacts.

P8 A minimum of 70% of the northern façade is to include windows and balconies of habitable rooms.

P9 Horizontal Shading on the northern façades and vertical shading for eastern/western facades are encouraged to control heat gain and glare to the internal areas.

P10 New developments on corner sites should orient to both street frontages.

P11 Accentuate the corner's unique location with architectural features that actively engage the public realm and create a visual presence at the corner, such as:

- Chamfered or rounded corners
- Different material and colours
- Recessed balconies or windows
- Vertical articulation/modulation

P12 Corner entrances should address the two street frontages.

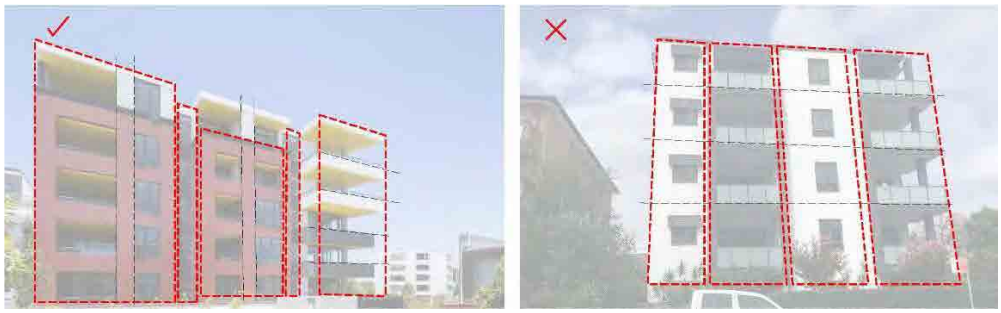


Changing the façade material, articulation or colour to highlight prominent corners.

(Source: ADG, 4M)

P13 Integrate building service elements, such as drainage pipes, grilles, screens, ventilation louvres and car park entry doors into the overall facade design.

P14 A variety of architectural modulation, rhythm and fenestration is required to enhance the façades visual character.



P15 Openings are to be recessed at a minimum of 100mm to add depth to the façade.

P16 Recessed balconies are preferable to provide privacy, protection and depth to the façade.

P17 Sliding louvred panels screening the balconies are encouraged to add visual privacy and control the solar access.

P18 Residential flat buildings of 5 storeys and more should have a distinguished base, middle and top in their façade design. New buildings up to 4 storeys and below should have a distinguished base and top.

P19 The pedestrian entries to buildings shall be readily apparent from the street, and that part of buildings adjacent to the public street shall have living room or kitchen windows facing the street.



Recessed openings add depth to the overall façade. (Source: GMU Library)

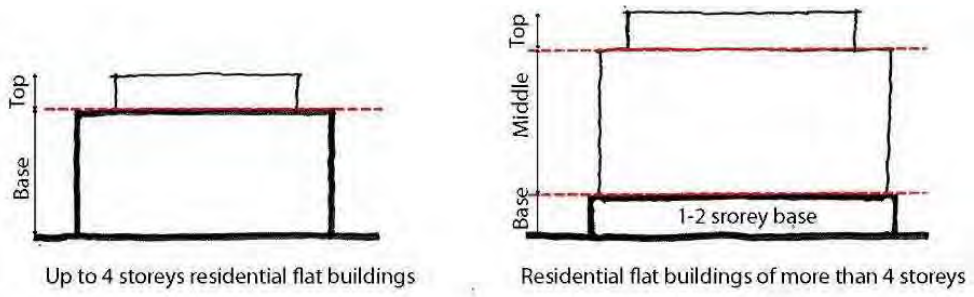
Building Base

P20 This applies within the first 1-2 storeys of the residential flat buildings with 5 storeys and more.

P21 A clearly defined base is encouraged through the use of different materials, textures and articulation to reinforce the character of the public domain.



Example of a clearly defined base, middle and top. (Source: Google)



Up to 4 storeys residential flat buildings

Residential flat buildings of more than 4 storeys

P22 Differentiating building entrances is required through different materials, textures and articulation.

P23 Parking entrances are to be encapsulated within the building envelope on primary and secondary elevations that have direct access to a public road and are to have a maximum aperture or length of 6 metres.

P24 Service/parking entrances are to be integrated with the overall façade design using quality material and finishes.

P25 All materials surrounding the entry and lining the inside or any part of ramps that are visible from the public domain when security grills are open are to be integrated with the overall design and be of high quality materials and finishes.



Figure 82. Examples of parking entrances encapsulated within the building envelope

P26 The base is to be integrated with the landscape character of the building. Using natural material such as brick and sandstone with recessive colour to blend the building with its natural context is encouraged.

Building Middle

P26 Façade segments are to be articulated with different façade planes, materials and textures every 10-15m.

P27 Façade rhythm and articulation should reinforce the predominant scale of the adjacent developments.

Roof Top and Roof Gardens

P28 Roof design is to be integrated with the overall built form and respond to the predominant roof character of the surrounding neighbourhood. A roof termination or a distinctive roof design is encouraged.

P29 Different façade expressions including articulation, material, parapet, colour and texture to differentiate the top level and roof are encouraged.



Examples of the roof character integrated with the overall façade design.
(Source: GMU Library, Google)

P30 Visually recessive building tops to create greater aperture to the sky and reduce the perception of bulk and scale are encouraged.

P31 Rooftop design should take into account potential views from surrounding taller buildings. Green roofs and roof gardens or patios will enhance rooftop appearance from surrounding buildings.

P32 The design of the roof should respond to the orientation of the site, minimise the visual intrusiveness of service elements (which should be integrated with the roof design) and facilitate the use of the roof for communal open space.

P33 Residents shall have access to rooftop and podium gardens wherever possible. At least 50% of the roof area shall be vegetated with grasses, shrubs and trees.

P34 Planter boxes must be located at the perimeter of rooftop gardens to minimise overlooking of neighbouring dwellings.

P35 Planting containers must allow sufficient depth and volume, growing medium and irrigation to support the mature size of plants.

P36 All planting areas on structures must be designed by a suitably qualified engineer.

Materials and Finishes

BDCP Section 3.2.2 also applies to residential apartment buildings in the R1 General Residential zone.

Lighting and Signage

BDCP Section 3.2.3 also applies to residential apartment buildings in the R1 General Residential zone.

Site and Building Amenity

Objective

O1 To ensure the design of internal and external amenities is functional and enhances the quality of the environment for occupants

Provisions

Private Open Space

P1 Private open space may be in the form of courtyards, decks, balconies or on podium levels and is to be provided for every dwelling in a development to cater for the immediate needs of the new residents.

P2 Private open space is to have a northern aspect where practicable.

P3 Private open space is to be directly accessible from the living area of the dwelling and capable of serving as an extension of the living area.

P4 Planting beds, screen walls and solid-walled balconies should be used to achieve a high level of privacy for a dwellings private open space.

Communal Open Space

P5 A minimum of 25% of the site area must be allocated for communal open space. It must have a minimum dimension of 6 metres and 50% of communal open space must be unpaved soft landscaped area.

P6 Communal open space is to present as a private area for residents only, include passive surveillance from the adjacent living areas of dwellings and provide for active and passive recreation needs.

P7 Communal open space may be in the form of roof areas and ground level and elevated gardens, but does not include indoor recreation areas. It should have a northerly aspect where practicable.

P8 Communal open space must achieve visual and acoustic privacy, safety and security.

P9 Communal open space must achieve good amenity in terms of natural airflow, outlook and solar access. At least 30% of the communal open space area is to achieve 2 hours of direct sunlight between 9.00am and 3.00pm on June 21.

Landscaping

P10 A minimum of 10% of the site area is to be deep soil and have a minimum dimension of 4 metres.

For sites larger than 1500sqm, a deep soil zone shall consist 15% of the site.

Where a basement carpark protrudes to deep soil areas, provide suitable two horizon topsoil growing medium, including a drainage layer to allow for mature tree growth

P11 It is expected that 25% - 30% of the site be landscaped (inclusive of the deep soil zone). Landscaped area includes all pervious surfaces, open space at ground level and open space with a minimum dimension of 1 metre.

P12 Information on landscaping of the site prepared by a Landscape Architect or practicing Landscape Consultant shall be required as part of the development approval process.

P13 The requirements of Council's Landscaping Code shall be complied with for the retention of existing trees and planting of new trees.

P14 Any residential flat building with a flat roof is expected to provide a rooftop garden in accordance with Section 4.1.2 above.

Solar Access and Natural Ventilation

P15 DAs are to include diagrams in plan and elevation that shows sun access to proposed apartments and the shadow impact on neighbouring dwellings from the proposal at 9.00am, 12.00pm and 3.00pm on March 21 and June 21.

P16 At least 70% of the living rooms and private open spaces of the proposed apartments and neighbouring developments are to receive a minimum of 3 hours direct sunlight between 9.00am and 3.00pm on June 21.

P17 Where the neighbouring development currently receives less than 3 hours direct sunlight to living areas/habitable rooms or to the private open space area, any additional overshadowing is to be minimised.

P18 Apartments shall be naturally cross-ventilated, and in particular kitchens should have access to natural ventilation.

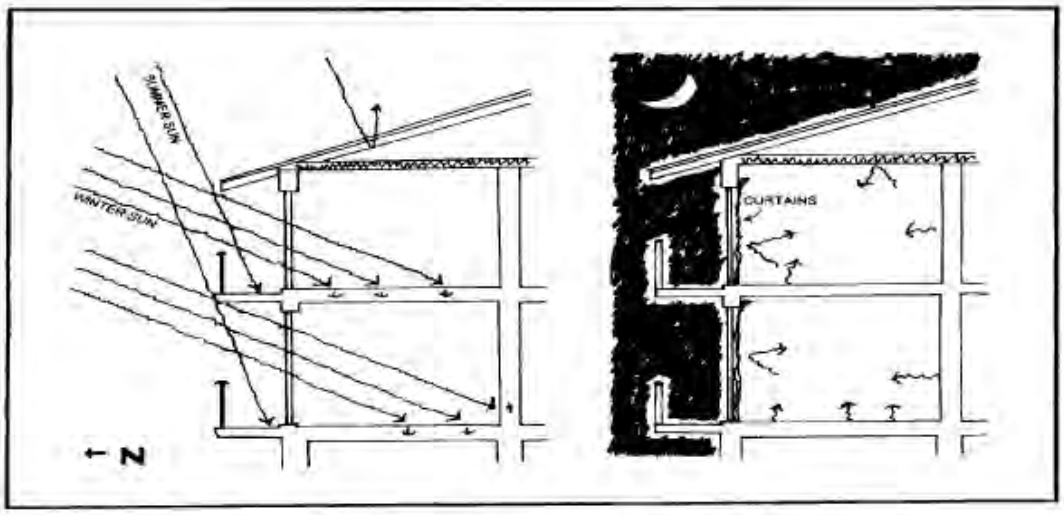


Figure 83. Solar Access and Insulation

Visual Privacy

P19 Provide adequate building separation in accordance with the building separation requirements in the ADG.

P20 Avoid overlooking to and from private open space and the main habitable areas of dwellings through building layout and location, design and location of windows and screening devices, balcony design and distance.

Acoustic Amenity

P21 The internal layout of buildings is to be designed to reduce the effects of noise transmission through building materials and locating noise generating areas together.

P22 The layout and soundproofing of apartments shall limit noise transmission between apartments, and from adjoining sites particularly from noise sites.

P23 The provisions of 3.2.14 Visual and Acoustic Privacy P3 to P7 are to apply to Residential flat buildings in the R1 zone.

Safety and Security

P24 Design of developments must provide personal and property security for residents and visitors and enhance perceptions of community safety.

P25 A Crime Risk Assessment in compliance with Crime Prevention Through Environmental Design (CPTED) requirements is to be prepared by a suitably qualified consultant is required for DAs of more than 20 dwellings.

P26 Each building shall be provided with an entry that creates a sense of identity for the development.

P27 Buildings shall be designed to provide casual surveillance, have appropriate lighting, clearly defined territory and avoid concealed or blind spots.

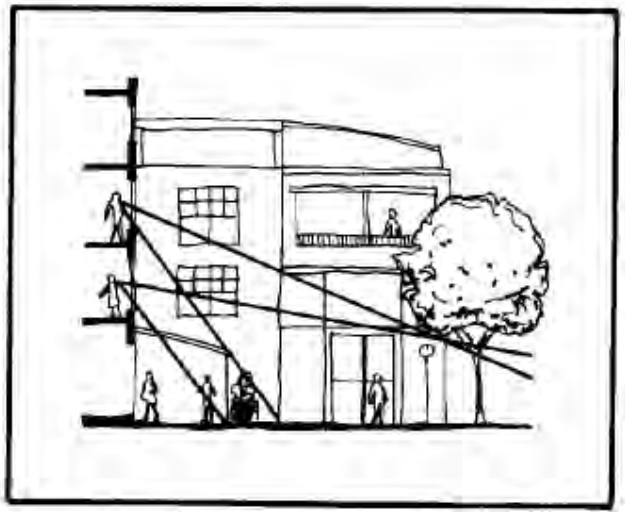


Figure 84. Casual Surveillance of the Street

Fences and Walls

P28 The design and materials of fences and walls must be sympathetic to the streetscape, visually attractive and complement landscape elements.

P29 The height (as measured from the public footpath side) of the front fencing must be:

- Not higher than 1.2 metres above ground level (existing), and with a maximum solid base component of 0.9 metres high.
- Not higher than 1.5 metres above ground level (existing) if the fence follows a sloping site and is stepped to accommodate the fall in the land, and with a maximum solid base component of 1m high.

P30 The side fence and any internal fences behind the building line are to have a maximum height of 1.8 metres.

P31 Forward of the front building line, fences must step-down or transition to the height of the front fence.

Facilities and Amenities

P32 An amenities room (for meetings etc) is to be provided where the building has more than 15 residential units. The room shall have minimum dimensions of 4 metres and be available for the use of residents.

P33 The size, capacity and location of garbage bin areas and storage facilities, and the provision of waste chutes in residential flat buildings shall be in accordance with the Waste Management section of this DCP, which seek to encourage waste minimisation.

P34 Clothes drying areas shall be provided within an area of communal open space or provided within each residential unit. If provided on the balcony of individual units, the drying area must be screened from exterior view, and be designed in such a way that does not detract from the building's appearance from the public domain.

Mailbox and Postal Facilities

P35 Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under Section *3.2.4 Street-Front Activities and Building Access.* Refer to **Figure 1** and **Figure 2**.

Fire Safety and Power Supply Utilities

P36 Fire safety and power supply utilities are to comply with provision P12 under Section *3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 3**.

Mechanical and Ventilation Equipment

P37 Mechanical and Ventilation Equipment are to comply with Provisions 15, 16, 17, 18 under Section 3.2.4 Street-Front Activities and Building Access.

Adaptable Housing

P38 All development for residential flat buildings in the R1 zone must provide 10% of dwellings for adaptable housing to cater for ageing in place and/or mobility impaired residents.

P39 At least one car parking space must be provided and allocated to each dwelling required to be provided as accessible or adaptable housing under this Section and the car parking space must be accessible in accordance with the provisions of AS 1428.2 to facilitate automatic vehicular wheelchair loading and unloading.

Car Parking and Ground Level

P40 Basement car parking is to be located fully below natural ground level. However, where slope conditions necessitate protrusion above natural ground level, the protrusion is not to exceed 0.75 metres. Otherwise, it will be counted as floor area.

4.2 Shop Top Housing in Residential Zones

4.2.1 Introduction

Shop top housing is permitted in the R1 General Residential and R3 Medium density residential zone under the BLEP 2012. Shop top housing is defined as one or more dwellings located above ground floor retail premises or business premises.

In both the R1 and R3 zones, shop top housing must occur in conjunction with neighbourhood shops which are the only permitted retail or business premises in this zone. The definition does not state any numerical relationship between the retail premises, and the number of residential units in shop top housing. However Clause 5.4 (7) of the BLEP 2012 requires that Neighbourhood shops must not exceed 80 square metres in floor area.

4.2.2 Treatment of Shop Top Housing

In the R1 zone, where a development contains three of more dwellings attached to one or more neighbourhood shops, the residential component of the development will be subject to the provisions of this DCP as if it were a residential flat building.

Where a development of shop top housing comprises one or two dwellings in the R1 zone, it is likely to be low rise in character. In the R3 zone, the scale of shop top housing will be limited by the building height limit and maximum FSR development standards applying in this zone. In both these cases this DCP section does not establish any additional controls for neighbourhood shops or associated shop top housing. Such developments will be considered on a merit basis having regard to the DCP controls applying to other forms of development in the zone and the existing character of the area.

4.2.3 Acoustic Provisions

The provisions of 3.2.14 Visual and Acoustic Privacy P3 to P7 are to apply to Residential flat buildings and shop top housing.

4.3 Multi Dwelling Housing

4.3.1 Introduction

This section mainly applies to multi dwelling housing in the R3 Medium Density Residential zone in the BLEP 2012, and also in the R1 General Residential zone where multi dwelling housing is also permitted.

Under the BLEP 2012, 'Multi dwelling housing' means three or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building. This form of development commonly is referred to as town house or villa housing.

Three or more dwellings attached to a Neighbourhood shop in the R1 or R3 zones will constitute shop top housing.

Under the BLEP 2012 the development standards applying in the R3 zone will constrain the scale of all permitted development including multi dwelling housing. In the R1 zone applicable development standards will mostly allow for more intensive development, and the scale of multi dwelling housing is likely to be constrained by the requirement for ground level access to each dwelling.

The provisions within this section of the DCP address the three key aspects of planning and design for multi dwelling housing being:

- Site Planning – how buildings responds to the site, neighbours and streetscape with provisions creating a basic building envelope.
- Building Design – the aesthetic and functionality of building facades with provisions refining the building envelope.
- Site and Building Amenity – provisions for internal and external building amenity with provisions addressing the finer details of the building.

4.3.2 Development Controls

Site Planning

Objectives

O1 To ensure new development responds to the scale and form of the existing context (streetscape and adjoining properties) and site elements (landscaping and services).

O2 To ensure new development provides appropriate levels of amenity for the private and public domain.

O3 To ensure the street setbacks enhance the setting of the building and maintain amenity between neighbouring sites.

Provisions

Setbacks

P1 The front setback of a building is to be a minimum of 6m.

P2 Side setbacks are to be a minimum of 2 metres for the ground floor level, and 3.5 metres for the first floor level or above.

P3 The rear setback of a building is to be a minimum of 3 metres.

P4 Setback areas must be free of projections or encroachments, except for at-grade landscaping, to protect the amenity of adjoining properties and the streetscape.

Building Separation

P5 The requirements for the separation of buildings on a site are shown in **Figure 86**:

- A minimum of 12 metres between buildings within the development site where habitable rooms face other habitable rooms
- A minimum of 9m between buildings within the development site where habitable rooms face non-habitable rooms or blank walls
- A minimum of 3m metres between buildings within the development site where non-habitable rooms face other non-habitable rooms or blank walls

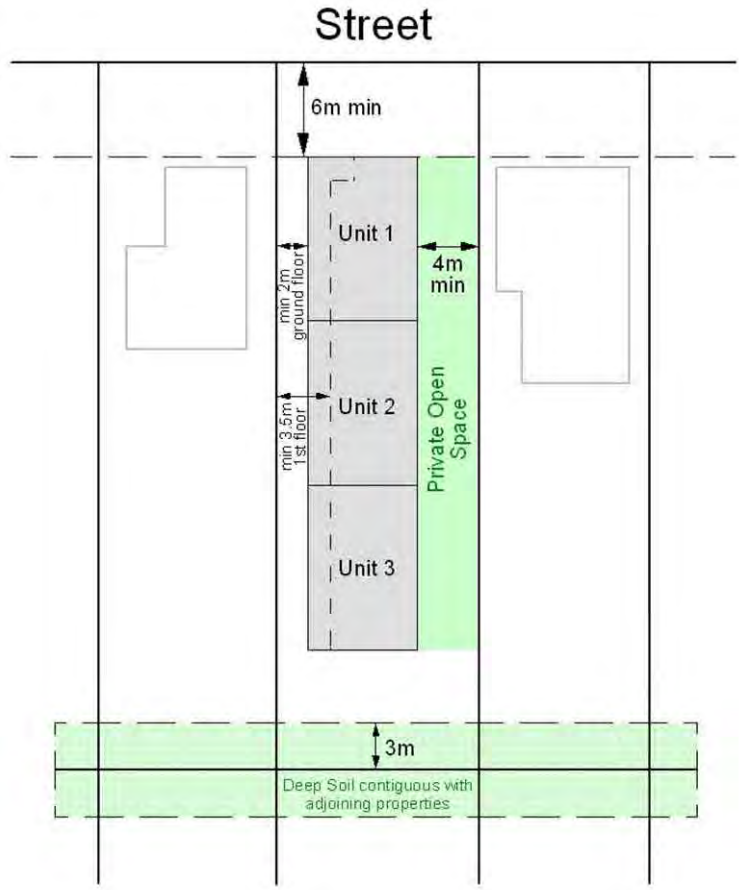


Figure 85. Setback Requirements for Multi Dwelling Housing

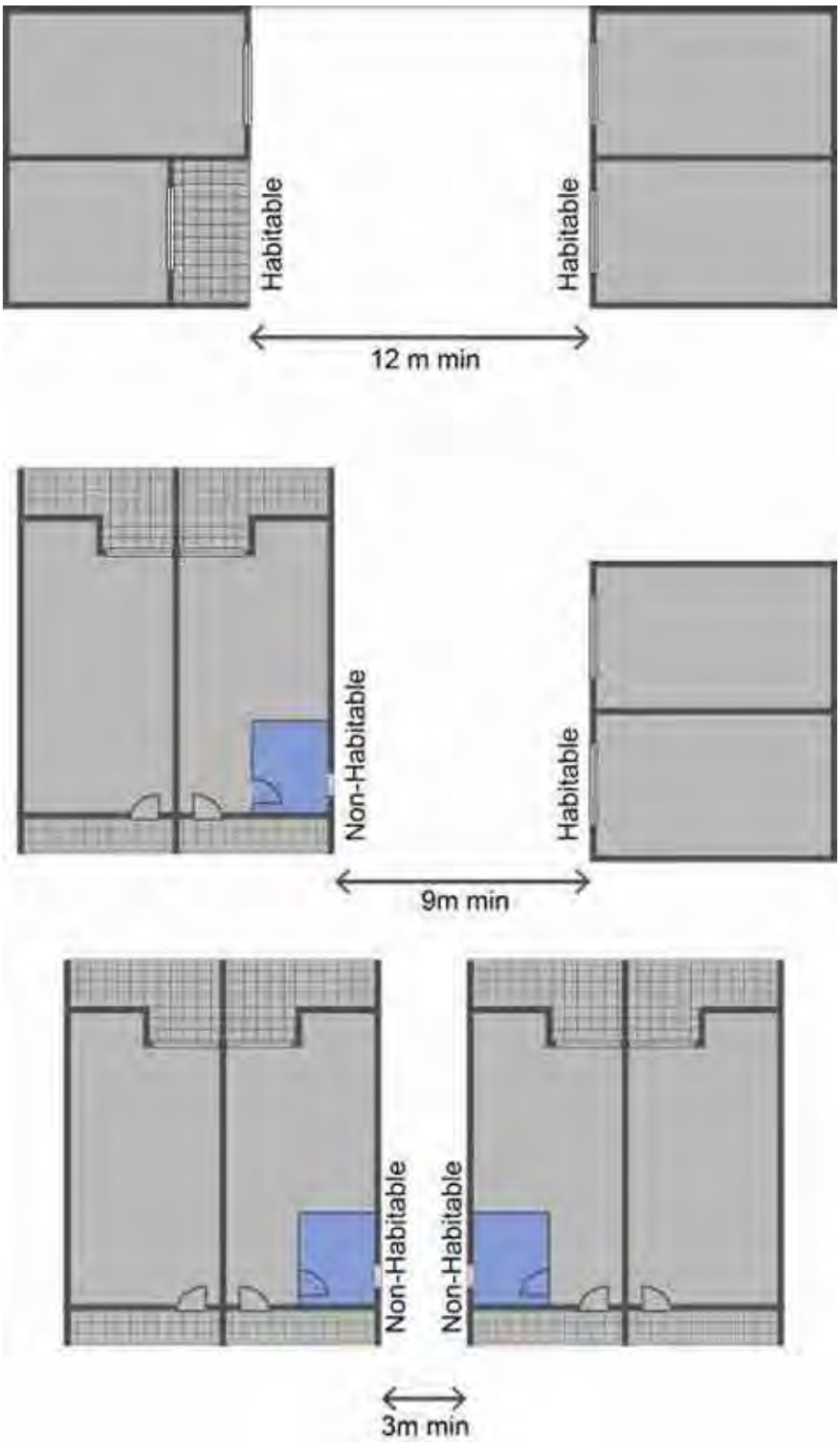


Figure 86. Building Separation for Multi Dwelling Housing

Building Widths and Breaks

P6 The maximum width of a building facing a street is 20 metres (see diagram below). A maximum length of uninterrupted building frontage of 10m for terrace or townhouse development in order to achieve substantial articulation in the form of an indent, recess or physical break along the length of the elevation.

P7 Breaks between buildings facing a street should be a minimum of 3 metres wide, and where possible provide alignment with other streets, lanes or regional views (see diagram below).

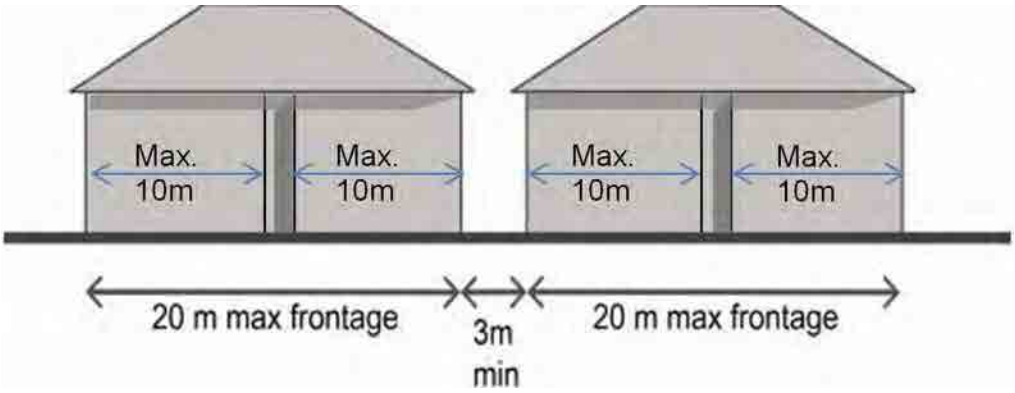


Figure 87. Maximum Building Width and Building Breaks at Street Frontage

P8 A building facade within a development shall not exceed a horizontal dimension of 14 metres without adequate articulation.

Site Frontage and Site Isolation

P9 The minimum site frontage required for single storey development is 15 metres, and for two storey development is 17 metres.

P10 For single storey development, attic rooms and dormer windows are allowed which must be incorporated within the roof features.

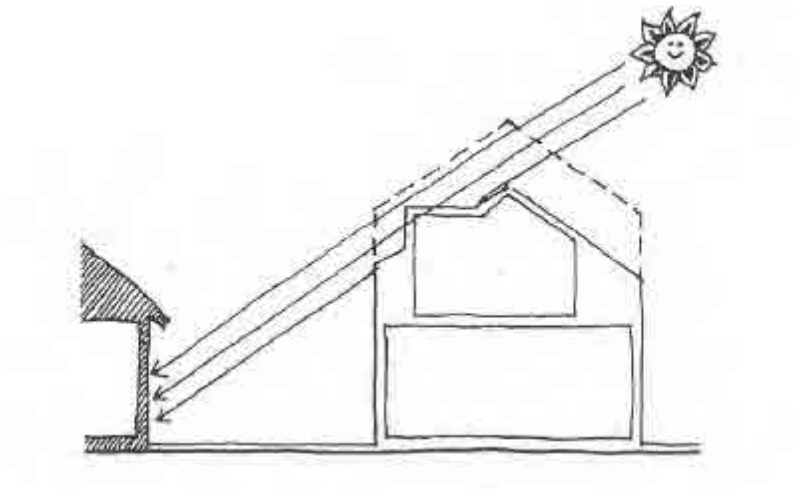


Figure 88. Use of Attic Rooms and Dormer Windows. Source: AMCORD 19

P11 Site consolidation is encouraged to promote efficient use of land and avoid the creation of isolated sites.

P12 The provisions concerning Site Isolation in Section 4.1.2 also apply to the development of multi dwelling housing.

Building Design

Objective

O1 To ensure the appearance of new development defines and enhances the public domain through modulation, articulation, materials and sensitivity to heritage items and areas.

Provisions

Building Facades

P1 The façade elements (windows, balconies, gables) must be articulated and relate to the scale and character of the context.

P2 A mix of building materials and colours should be used to reduce the appearance of bulk and integrate the building within the materials and colour palettes of the local area.

P3 The frontage of buildings and their entries shall be readily apparent from the street, with buildings adjacent to the public street having a front door and living room or kitchen window facing the street.

Roof Design

P4 The design of the roof should respond to the orientation of the site.

P5 The design of the roof shall be integrated with the proposed built form and consistent with adjacent properties, and reduce the bulk and scale of the roof through articulation.

P6 The maximum permitted roof pitch is 32 degrees (Refer to **Figure 89**).

P7 Attic rooms must be contained wholly within the roof structure, however Council may consent to dormer windows and similar projections only when it is satisfied the privacy of neighbours is protected.

Car Parking and Ground Level

P8 Where parking spaces are provided in a basement it is to be located fully below natural ground level however where slope conditions necessitate protrusion above natural ground level, the protrusion is not to exceed 0.75 metres otherwise it will be counted as floor area (Refer to **Figure 89**).

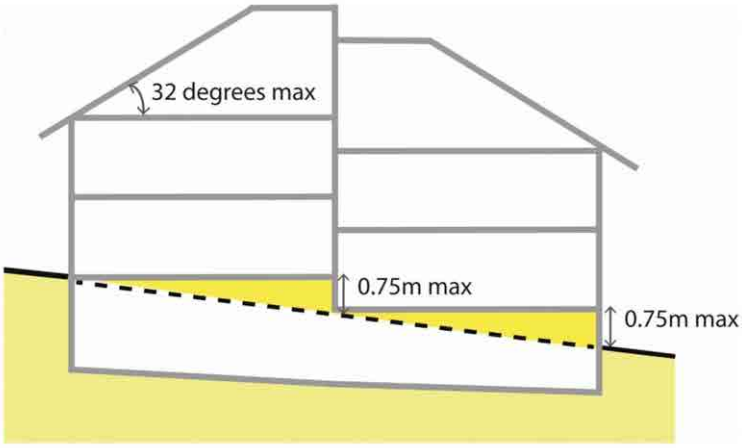


Figure 89. Maximum Projection for Basement Car Parks on Sloping Sites and Maximum Roof Pitch

Site and Building Amenity

Objective

O1 To ensure the design of internal and external amenities is functional and enhances the quality of the environment for occupants

Provision

Private Open Space

P1 Private open space is to have a northerly aspect where practicable.

P2 Private open space is to be directly accessible from the living area of the dwelling and capable of serving as an extension of the living area.

P3 Private open space is to have the following minimum consolidated area and dimensions for all dwellings: 25 square metres at ground level with a minimum dimension of 4 metres in one direction.

P4 Planting beds, screen walls and solid balconies should be considered to achieve a high level of privacy for a dwellings private open space.

P5 Pedestrian access must be provided to private open space areas independently of access through the dwelling. This access may be through a garage area or external laundry.

P6 Private open space in addition to the minimum 25 square metres requirement may be provided between the building and the street boundary provided it is not closer than 6 metres to the street alignment.

Communal Open Space

P7 A communal open space area must be provided where the number of dwellings in a development exceeds eight.

P8 Communal open space should have a minimum dimension of 6 metres.

P9 Communal open space should have a northerly aspect.

P10 Communal open space is to present as an area for residents only, include passive surveillance from the adjacent living areas of dwellings and provide for active and passive recreation needs.

P11 Communal open space must achieve good amenity in terms of natural airflow, outlook and solar access. At least 30% of the communal open space area is to achieve 2 hours of direct sunlight between 9.00am and 3.00pm on June 21.

Deep Soil

P12 A minimum of 15% of the site area is to be deep soil and have a minimum dimension of 4 metres by 4 metres.

P13 Deep soil areas should be consolidated on the development site and should be contiguous with at least some of the communal open space area (where provided) and the deep site zones of adjacent properties.

P14 Existing mature trees should be retained, and if this is not possible or they are not present, new trees should be provided at the rate of 2 per 100 sqm.

Landscaping

P15 A minimum of 25% of the site is to be landscaped (inclusive of the deep soil zone).

P16 Landscaped area includes all pervious surfaces, open space at ground level and open space with a minimum depth of 1 metre.

P17 Information on landscaping for the development prepared by a Landscape Architect or practicing Landscape Consultant shall be required as part of the development assessment process.

Solar Access and Natural Ventilation

P18 The Development Application is to include diagrams in plan and elevation that show sun access to the proposed dwellings and open spaces and the shadow impact on neighbouring dwellings from the proposal at 9am, 12pm and 3pm on March 21 and June 21.

P19 Dwellings within the development site and adjoining properties are to receive a minimum of 3 hours direct sunlight in habitable rooms and in at least 50% of the private open space between 9am and 3pm on June 21.

P20 Where the neighbouring development currently receives less than 3 hours direct sunlight to living areas/habitable rooms and 50% of the private open space area, any additional overshadowing is to be minimised.

P21 Living areas of the dwellings (kitchens, family rooms) should be located on the northern side of the dwelling, and service areas (laundries and bathrooms) to the south and west.

P22 Landscaping should provide shade in summer without reducing solar access in winter.

P23 All rooms should contain an external window to provide direct light and ventilation, exceptions maybe considered for non-habitable rooms.

P24 Natural cross ventilation should be achieved by locating window openings in opposing walls and in line with each other.

P25 Buildings should be oriented to benefit from prevailing breezes.

P26 Buildings should have narrow cross sections, providing dual aspect for dwellings to allow for cross ventilation.

P27 Consideration should be given to attics being cross-ventilated.

Visual Privacy

P28 Provide adequate building separation in accordance with the setback requirements.

P29 Building layout and location, design and location of windows and screening devices, balcony design and distance should avoid or minimise overlooking to and from private open space and the main habitable areas of dwellings.

Acoustic Privacy

P30 The layout and soundproofing of dwellings shall limit noise transmission between dwellings, and from adjoining sites.

P31 A Noise Impact Assessment prepared by a suitably qualified acoustic consultant may be required when submitting a DA.

Safety and Security

P32 A Crime Risk Assessment in compliance with CEPTD requirements is to be prepared by a suitably qualified consultant when submitting a Development Application for more than 20 new dwellings.

P33 Each dwelling is to be provided with an entry that creates a sense of individual identity.

P34 Buildings shall be designed to provide casual surveillance, have appropriate lighting, clearly defined territory and avoid concealed or blind spots.

Fences and Walls

P35 The design and materials of fences and walls must be sympathetic to the streetscape, visually attractive and complement landscape elements.

P36 The height (as measured from the public footpath side) of the front fencing must be:

- Not higher than 1.2 metres above ground level (existing), and with a maximum solid base component of 0.9 metres high.
- Not higher than 1.5 metres above ground level (existing) if the fence follows a sloping site and is stepped to accommodate the fall in the land), and with a maximum solid base component of 1 metres high.

P37 The side fence and any internal fences behind the building line are to have a maximum height of 1.8 metres.

P38 Forward of the front building line, fences must step-down or transition to the height of the front fence.

Facilities and Amenities

P39 Garbage bin areas and external storage facilities shall be sited and designed for attractive visual appearance and function and complement the architecture and environs. The size, capacity and location of garbage bin areas shall be in accordance with the Waste Management provisions of this DCP.

Mailbox and Postal Facilities

P40 Mail box and postal facilities to be included and to comply with provisions P8, P9 and P10 under Section *3.2.4 Street-Front Activities and Building Access.* Refer to **Figure 1** and **Figure 2**.

Fire Safety and Power Supply Utilities

P12 Fire safety and power supply utilities are to comply with provision P12 under Section *3.2.4 Street-Front Activities and Building Access*. Refer to **Figure 3**.

Mechanical and Ventilation Equipment

P12 Mechanical and Ventilation Equipment are to comply with Provisions 15, 16, 17, 18 under Section 3.2.4 Street-Front Activities and Building Access.

4.4 Dual Occupancies and Secondary Dwellings

4.4.1 Introduction

This BDCP section applies to all applications for development consent involving a dual occupancy or a secondary dwelling under the provisions of the BLEP 2012.

A reference to dual occupancy in this section is to be taken to also apply to a secondary dwelling, unless stated otherwise, or separate controls are provided.

4.4.2 Affordable Rental Housing SEPP

Under State Environmental Planning Policy (Affordable Rental Housing) (ARHSEPP) 2009, a person may carry out development for the purposes of a secondary dwelling (i.e. granny flat) as complying development by applying for a Complying Development Certificate (CDC) from Council or an Accredited Certifier. Please refer to Clause 23 and Schedule 1 of the ARHSEPP for the provisions required for a CDC via the following link:
https://legislation.nsw.gov.au/#/view/EPI/2009/364

A development proposal for a secondary dwelling which does not satisfy the CDC provisions of Clause 23 of the ARHSEPP will require the submission of a DA, and the DA will be assessed under Clause 22 of the ARHSEPP, BLEP and this BDCP. Any DA submitted to Council should provide assessment against relevant requirements of the ARHSEPP, the BLEP and this BDCP in the Statement of Environmental Effects.

4.4.3 Development Controls

Objectives

O1 Assist in provision of affordable rental accommodation.

O2 Provide additional family accommodation within an existing dwelling house or by enabling a second dwelling on the same allotment.

O3 Ensure the amenity of residents of the dual occupancy development, as well as that of the residents of adjoining and nearby dwellings.

O4 Ensure the compatibility of residential development with the scale of development and character of existing localities.

Development Sites

Minimum Area of Allotments

P1 Clause 4.1A of the BLEP 2012 establishes minimum lot size development standards for dual occupancies.

P2 Secondary dwellings will not be permitted on lots with an area less than 450 sqm.

Battleaxe or Hatchet Shaped Allotments

P3 If an application is made to erect either an attached or detached dual occupancy development upon a battleaxe allotment, the dwellings will be limited to single storey to reduce the potential for privacy impacts on surrounding properties.

Building Design

Height

P1 No building is to exceed two storeys in height above natural ground level.

P2 Where a dual occupancy or secondary dwelling development proposes one dwelling at the property's street frontage and the other dwelling within the rear yard, the rear dwelling will generally be limited to single storey.

P3 In areas zoned R1 or R3, Council may consider allowing both dwellings to be two storeys in part or with an attic-style first floor level. The size and location of the upper floor will be determined in the context of streetscape and amenity considerations following the applicant's preparation of a detailed site analysis.

P4 The floor to ceiling height of the first floor level of a proposed dwelling is not to exceed 2.6 metres in height to minimise overshadowing and reduce visual bulk.

P5 The floor to ceiling height of a ground floor level on a new dual occupancy dwelling is not to exceed 2.7 metres.

Advisory Note:
Floor-to-ceiling heights of rooms are to satisfy the requirements of Part 3.8.2 of the Building Code of Australia to ensure that the proper functioning of the room is not unduly prejudiced, nor the level of fire safety is reduced.

Floor Space Ratio

P6 The maximum Floor Space Ratio (FSR) is set out in the Floor Space Ratio Map of the BLEP 2012.

P7 Where a dual occupancy development is proposed in a R1 or R3 zone, consideration will be given to the visual bulk and scale of the proposed development. Excessively sized dual occupancy developments will not be accepted on the basis of FSR alone, and the development proposal must demonstrate compatibility with the established streetscape character and building appearance in the locality.

Advisory Note:
For calculating the Floor Space Ratio, it is important to consult the definition contained in clause 4.5(2) of the BLEP 2012, together with the definition of Gross Floor Area in the BLEP 2012 Dictionary. It should be noted that the calculation is taken from the internal face of walls and includes all buildings within a site.

Built Area

P8 The maximum Built Area is 67%.

Built Area is determined to be the total floor area of all buildings relative to the area of the allotment of land expressed as a percentage. The calculation of Built Area shall be taken from the external face of walls (i.e. includes wall thickness) and includes the area of each floor or storey balconies, verandahs and the like, whether covered or uncovered, open or enclosed garages, carports and covered car parking (except basement car parking) and outbuildings. Built Area excludes outdoor swimming pools, paths and exterior driveways.

Setbacks

The following setbacks apply for dual occupancy development and secondary dwellings:

P9 Front setback (for the dwelling addressing the primary street frontage):

- The average of the localised existing building line for the ground floor level.
- 9 metres to the upper level of a two storey dwelling, and the first floor level must be setback at least 3 metres beyond the ground floor façade.

P10 Side setback:

- 900 millimetres to the ground floor level or single storey elevation.
- 1.5 metres to the upper level of a two storey dwelling.

P11 Rear setback:

- 3 metres setback to the ground floor level of a dwelling.
- 6 metres setback to the upper level of a two storey dwelling.

P12 Secondary street (i.e. side street) setbacks for corner properties:

- The existing building line to that secondary street.
- If located in a R1 or R3 zone and both dwellings will be two storeys, the upper level must be setback at least 600 millimetres from the ground floor for the side that has frontage to the secondary street.

Advisory Note:
The primary street frontage will be taken to be the street to which the property is rated, or the property's narrower frontage.

Size of Buildings

P13 Irrespective of the allotment size, the Council does not generally favour dwellings exceeding 450 square metres in Built Area. Applicants should submit written justification in support of larger dwellings. Buildings above this size will generally only be allowed where the allotment size, floor space ratios and the character of existing development in the area so warrants.

Landscaping

P14 A minimum 30% of the front setback (i.e. front yard) is to consist of soft landscaping.

P15 Rear yards will not be permitted to be dominated by hard landscaping.

Development Features

Private Open Space

P1 Each dwelling is to be provided with a clearly identifiable area of private open space of at least 50 square metres adjacent to living areas to ensure the amenity of the dwelling in terms of privacy and recreation.

P2 The private open space should also satisfy the following criteria:

- Consist of predominantly grassed area.
- Consist of "useable space" with sufficient dimensions to enable the area to function as a private recreational area. Narrow elongated areas will not be included in the 50m² minimum open space requirement.
- Provided behind the building alignment of each of the respective dwellings. In the case of detached dual occupancy developments, with the second dwelling at the rear of the site, the private open space area for the dwelling furthest from the street

should preferably be situated between that dwelling and the rear property boundary.

- Landscaped as to maximise the visual amenity of the development and the privacy of adjoining developments.

Orientation of Buildings

P3 Council has preference for a dual occupancy design that positions one dwelling behind the other.

P4 Attached dual occupancies should be asymmetrical in appearance and orientated to the street.

P5 Detached dual occupancies should be orientated to the primary street frontage to retain the existing character of the locality. Council will not permit rear dwellings to face onto rear lanes.

P6 Dual occupancies on corner allotments should have each dwelling facing a separate street.

P7 Garages shall not be permitted forward of the building line.

Building Appearance

P8 All new building work shall be of quality design and compatible with the character of the locality. The building design is to maintain, or enhance, the quality and identity of its streets, and to provide a focus and identity for the dwellings.

Design should aim to match, or exceed, the best design and detailing of development in the locality, as well as architectural quality in its own right. Materials and workmanship is to be of high quality and compatible with the style of the house.

P9 Design should be in harmony with any adjoining or nearby heritage-listed building or other well designed and built dwellings in the area.

P10 Attention must be given to the design of all elevations and to roof forms, window and door openings and the building features generally.

P11 Front entries should be clearly visible and obvious from the street. An exception would be side entrances for a California Bungalow design. Where there is a side entrance, it should be indicated by design and details of paths, planting, fencing and side porch.

P12 Rigid symmetry should generally be avoided in design, as the majority of Burwood's residential character comprises asymmetric building design.

P13 Wide and/or long elevations should be treated to provide for visual relief in the form of setbacks, recesses and articulation which reflect changes in the plan and roof form.

P14 Separate garages and carports must be compatible with the building style as appropriate in relation to height, roof form, architectural work, materials, etc.

P15 A proper pattern of door and window treatment is required and should be matched with appropriate header and sill work. Windows should be of proper proportions and dimensions and should provide for uniformity in elevation. Window treatment by way of hoods, bay window design and/or timber framing may be required in appropriate situations.

P16 The location or size of verandahs and balconies should be carefully designed in relation to adjacent garden areas and rooms within the house, as well as orientation for sun/shade and privacy for surrounding properties. Verandahs across the full width of first floor façades are generally not supported.

P17 External stairways are not permitted to the upper floor level.

P18 Building façade projections, recesses and the like, are to be utilised within the design to reduce the box-like and bulky appearance of large, flat, vertical elevations upon a dwelling.

Streetscape

P19 Any new dwelling or alteration to an existing dwelling should be compatible with and complement those adjacent and nearby in the street and any new building work should positively contribute to the identity of the street and the locality.

P20 Dwelling design should enhance the existing built form and be of similar scale, form, bulk, placement and character to those adjoining and nearby in the street. The building line for new dwellings of similar scale should be the average of adjacent dwellings.

P21 Roofs should be of similar pitch, form and material to those generally in the street, e.g. roof gables are characteristic in some areas. Design is to continue the particular features of the prevailing character of the street, e.g. verandah treatment makes an important contribution to streetscape character.

P22 Front and side return fences should be of similar height, material and style and are to be in character and scale with those adjoining and in the street, and in conformity with Council's controls for front and side fences in section 4.5.5.2 of this DCP.

P23 Garages/carports should be of a scale and position so as not to conflict with the character of the houses in the street. Rear lane access should be used where available. Garage and carports are to be located to the side or rear of properties, wherever possible.

P24 Where a second storey is appropriate and permissible, and where most surrounding dwellings are mostly single storey, a new two storey building may not be appropriate, but a first floor addition may be considered if the upper storey is substantially setback from the front elevation.

P25 Single car width garage doors only will be permitted facing the street. Exception may be made for wide blocks of land. Double width garage doors are generally discouraged where they face the street. Garage door openings including intermediate piers must not exceed 40% of the entire width of the front elevation of the single dwelling.

Privacy

P26 Overlooking of adjoining yards and living areas from balconies at the upper level and from living areas is to be minimised, and building layouts are to be designed in relation to window placement and sill heights and doors to maximise privacy and minimise noise effects.

P27 Windows of habitable rooms at first floor level are to be offset relative to the side windows of adjoining dwellings. Screening devices and screen planting are to be utilised to minimise overlooking and maintain privacy between living areas and open recreation areas and to reduce loss of privacy to adjoining dwellings.

P28 Greater separation between the building and those adjoining should be provided for increased privacy, where necessary.

P29 Balconies are not to be located at first floor level where they overlook neighbour's outdoor living areas, unless adequate screening is implemented. Upper floor balconies will only be permitted off bedrooms and be of minimal dimensions. Living areas, including studies at the upper level are to have raised sill heights and/or translucent glazing of windows to minimise loss of privacy to adjoining dwellings.

Access

P30 Vehicular access to and from the dual occupancy must be in a forward facing direction.

P31 Tandem (not side by side) parking is not permitted where access to a dual occupancy is provided by a single driveway.

P32 Access shall be via land under title to the allotment and not via a right of way across an adjoining property.

P33 Council will not consent to development where a dual occupancy is proposed to face a major arterial road unless access is provided via an adjoining local road or by way of a consolidated driveway.

P34 Each dwelling is to have a separate and clearly identifiable entry that is easily accessible from the front road and parking areas.

Energy Efficiency

P35 Where ever possible regard should be given to improving energy efficiency. Energy efficient designs, materials and devices shall be considered in the construction of any dwelling. This issue is to be addressed in detail in the Statement of Environmental Effects, which accompanies the Development Application.

Solar Access

P36 New dual occupancy development is to ensure adequate sunlight is available for occupants of new buildings and to minimise loss of winter sun to adjoining premises.

Overshadowing in winter of adjoining premises is to be minimised, using minimum floor to ceiling heights and maximising setbacks of southern elevation walls at the upper level. Maximum use is to be made of north facing areas for windows, outdoor recreation, clothes drying, etc.

P37 First floor sections of dwellings are preferably to be incorporated within attic rooms, to minimise overshadowing to the south. Shadow diagrams are to accompany applications for two-storey development. The height of the wall of the first floor level section on a southern elevation is not to exceed 2.6 metres above its floor level.

P38 The southern elevation of the first floor on the minimum setback is not to exceed 10 metres in length. Council will permit extension if the wall is inset a further 2 metres as shown in Figure 42.

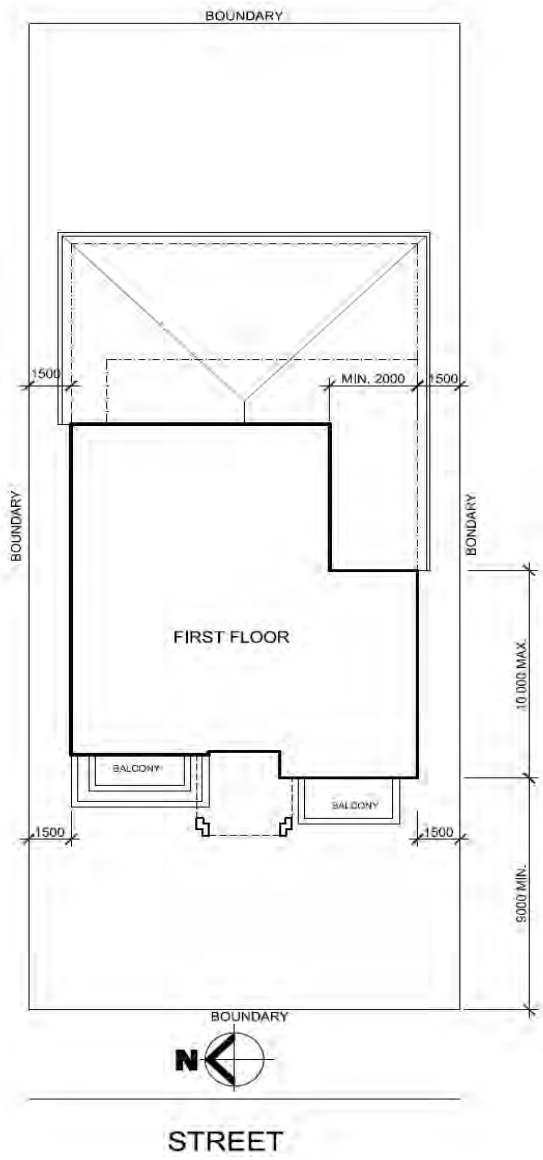


Figure 90. Setbacks to Minimise Overshadowing

Duplex Development

Duplex refers to two dwellings on a single lot that are positioned side by side when viewed from the street. It is a form of an attached dual occupancy.

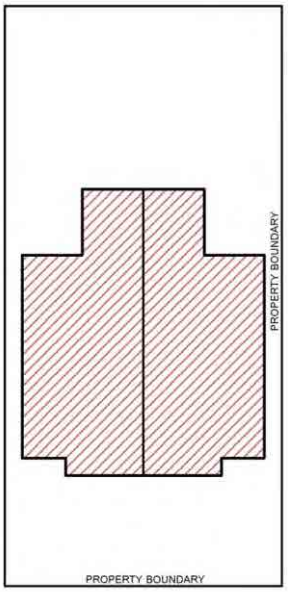


Figure 91. Understanding Duplex Development

P39 Duplex development will not be supported in streets and sites subject to Building Appearance and Streetscape Provisions under Section 4.5. Refer to the map at Appendix 8.2.

P40 Duplex development requires a minimum site frontage of 15 metres.

P41 Duplex development will not be supported on battleaxe lots. For corner allotments, both street frontages must each be a minimum of 15 metres.

P42 Garage door openings including intermediate piers and carports must not exceed 40% or 7.5 metres (whichever is the lesser) of the entire width of the front elevation of the duplex.

P43 Garages and carports must not be erected within the established duplex setback and the street alignment.

P44 A minimum of 50% of the front setback (i.e. front yard) is to consist of soft landscaping.

P45 Duplexes must provide variation in the design of the front façade of each dwelling. Mirror imaged duplexes, incorporating protruding garages facing the street, will not be supported by Council.

P46 Duplexes should be designed in a way to have the appearance of a typical single dwelling house when viewed from the street.

P47 Garaging of more than two cars (i.e. one for each dwelling) is considered excessive. The floor area of any further car space will be included in the gross floor area calculations.

Advisory Note:
Duplexes must comply with all other provisions of Section 4.4 Dual Occupancies and Secondary Dwellings.

Subdivision

P48 Dual occupancy and secondary dwelling developments, by definition, do not permit subdivision by Torrens Title.

Advisory Note:
Torrens Title subdivision may only be sought where the development is to be treated as two dwelling houses on separate lots, and satisfying the minimum subdivision lot size in Clause 4.1 of the BLEP, building separation requirements of the BCA/NCC, and Council's development controls for single dwelling houses. Council must be satisfied that each dwelling is able to function accordingly on its own lot, particularly in relation to parking provision and access, adequacy of private open space, and waste management.

P49 Dual occupancy developments in the R2 zone will not be permitted to be subdivided by Strata or Community Title.

This subdivision control seeks to provide for reasonable levels of affordable rental housing and family accommodation without unduly compromising the values of low density residential areas. The separate titling of dual occupancy developments is contrary to these aims as it leads to sporadic concentrations of opportunistic development, limits the adaptability of dwellings to meet future needs, and negatively affects the integrity of the subdivision pattern.

P50 A secondary dwelling will not be permitted to be subdivided under any titling system by virtue of its reliance on the principal dwelling and its small size.

Conversion of a Dwelling House

P51 Where an application is made to create two dwellings by means of conversion of a dwelling house with floor space ratio exceeding 0.55:1 and built prior to 19 June 1987, the Council may consent to the application if no increase in floor space ratio will result.

Existing Dwellings

P52 Council will not consent to a Dual Occupancy where the proposal will result in more than two dwellings. This includes cases where a dwelling is to be added to an existing building with two pre-existing domiciles.

Utility Services

P53 All water and sewerage pipes and duct work must not be visible from a public place and must meet Sydney Water's requirements.

P54 Electricity power poles placed within the front yard of the house must be treated in colours that match the existing single dwelling and be to Council's satisfaction.

Drainage

P55 All drainage works must comply with Council's Stormwater Management Code.

P56 Existing natural overland stormwater flow paths must not be diverted by fencing, retaining walls, buildings, paved areas or any other form of construction.

P57 New hard paved surfaces must be kept to a minimum to prevent stormwater runoff.

P58 Stormwater runoff from roofs, hard surfaces, swimming pools and the like must be collected, piped and drained to the kerb or an inter-allotment drainage system.

Charged lines are permitted, however these must be designed by a practicing Hydraulic Engineer.

P59 Pits and pumps are generally not permitted, except within basement garages.

P60 Absorption trenches are generally not permitted.

P61 Ground floor levels must be sufficiently elevated so as not to be subject to flooding.

P62 Soft landscaping and pervious surfaces must be maximised on the site.

P63 A stormwater concept plan is required to be submitted to Council in accordance with Council's Stormwater Management Code.

4.5 Dwelling Houses, Attached Dwellings, Semi-Detached Dwellings, Ancillary Structures

4.5.1 Introduction

This BDCP section applies to all Development Applications for the development, including demolition, of dwelling houses, attached dwellings and semi-detached dwellings, as well as structures ancillary to those development types, on land in Residential zones under the BLEP 2012.

A reference to 'single dwelling' herein means a dwelling house, or one dwelling within an attached dwelling or semi-detached dwelling development.

Aims

- Ensure that new development within the Burwood LGA adopts good urban design principles.
- Ensure the maintenance of a safe locality and pleasant environment for the long-term benefit of all residents in Burwood.
- Provide attractive streetscapes by ensuring that the proposed building work integrates with surrounding development.
- Ensure that new building work is visually compatible with the existing or identified future character of the locality.
- Provide for the privacy and boundary definition of individual properties whilst maintaining the open landscaped appearance of streets in the area.
- Ensure that garage and carport design is compatible with the streetscape and the development on site.
- Ensure that fencing is sympathetic to the scale and character of the street as well as the existing development on site.

4.5.2 Development Controls

Building Appearance

Overview

These Building Appearance controls apply only to streets and sites identified on the map in Section 8.2 titled *Streets and Sites Subject to Building Appearance and Streetscape Provisions*. These streets and sites have been recognised as having a high quality building appearance which should be maintained.

The appearance of single dwellings must be of a high standard to ensure that the character and visual cohesiveness of Burwood's residential areas are not diminished. Alterations to the façade of existing houses can seriously disrupt the unity of a group of single dwellings and detract from their existing character. This section encourages the use of suitable materials, sympathetic design and appropriate building practices to maintain and enhance the visual character of Burwood's residential buildings.

Objectives

O1 To ensure that new building works achieve a level of high quality design and are compatible with the character of Burwood's residential areas.

O2 To maintain or enhance the quality and identity of development in the areas identified in the map in Section 8.2.

Provisions

Design

P1 The design of the single dwelling must aim to match or compliment the best design and detailing of development in the area, as well as, be of high architectural quality.

P2 Care must be given to the design of building forms and to all elevations, roof forms, windows, door openings and building features generally to ensure that the single dwelling is compatible with and complementary to its neighbours and the streetscape.

P3 Building heights must relate to the general character of the houses in the immediate locality and in the street.

P4 Overall massing of building volumes must be articulated or modulated to avoid a bulky appearance. Articulation must be reflected in the building and roof forms.

P5 Wide and/or long elevations must be treated to provide for visual relief in the form of setbacks, recesses and articulations.

P6 The front entry of the single dwelling must be clearly visible and obvious from the street. An exception to this provision is side entrances to Californian Bungalow and Interwar designs.

P7 Where there is a side entrance, it must be clearly identified by design and detailing such as paths, planting, fencing or side porches.

Materials, Workmanship and Finishes

P8 Materials and workmanship must be of high quality and compatible with the style of the single dwelling and with the best of surrounding development.

P9 Appropriate materials and finishes must complement the architectural style of the single dwelling.

P10 Samples of finished surface materials such as bricks, tiles, ridge capping, windows, doors and a schedule of paint colours must be submitted to Council as part of the Development Application.

P11 An orderly pattern of door and window treatment is required to compliment the style of the single dwelling. Window and door openings must be finished with appropriate lintels and sills. Window panels must be of vertical proportions and must be set in solid reveals and provide for consistency in appearance.

Building Elements

P12 Ancillary structures such as garages, carports and outbuildings must be designed to reflect the style of the single dwelling in relation to height, roof form, architecture, materials and the like. These should conform to relevant DCP controls and compliment the character of the residential area.

P13 Window treatments such as hoods, bay window design and/or timber framing in appropriate situations may be required to enhance the building appearance.

P14 The location or size of verandahs and balconies adjacent to garden areas and rooms within the house must be carefully designed and take into consideration the orientation for sun/shade and privacy for surrounding properties.

P15 Balconies and first floor verandahs must be of modest dimensions so as not to facilitate excessive use and impact upon the amenity and privacy of adjoining premises.

P16 External stairways are not permitted to the first floor level of the single dwelling or to balconies and first floor verandahs.

Streetscape

Overview

This section applies only to streets and sites identified on the map in Section 8.2, titled *Streets and Sites Subject to Building Appearance and Streetscape Provisions*. These streets and sites have been recognised as having high quality streetscapes which should be maintained.

The streetscape includes both public domain spaces such as the street itself and the adjoining Council owned nature strip, as well as the front gardens and front building facades of each single dwelling within the street. Since the streetscape is about the interface between the private and public domain, every new development will affect the overall picture or character of an area. Whenever a new single dwelling or major alteration or addition is planned, it must respect and contribute to the streetscape and must not intrude upon or degrade the streetscape. Council's assessment of DAs must evaluate the impact of the proposal on streetscape character.

Objectives

O1 To ensure that any new single dwelling or alteration to an existing single dwelling is compatible with and complements adjacent and nearby single dwellings in the street.

O2 To ensure that any new building work should positively contribute to the character of the streetscape and the locality.

Provisions

Site Planning and Design

P1 Single dwelling design must preserve existing characteristics of neighbouring houses and enhance the existing built form and streetscape values. New single dwellings must be of similar scale, form, bulk, placement and character to adjoining and nearby single dwellings in the street.

P2 The building line must be consistent with the adjacent single dwellings.

P3 Building height at the street frontage must not exceed the height and scale of adjoining development.

P4 Roof design, materials and detailing must be complementary to the streetscape character.

Major Alterations and New Single Dwellings

P5 New attached dwellings and semi-detached dwellings will generally not be permitted on land subject to the Building Appearance and Streetscape provisions, nor within heritage conservation areas, unless the attached or semi-detached form can be established as the predominant building form in the existing locality, and the design of the new structures is sympathetic to those existing structures.

P6 The design of major alterations must retain characteristic features prevalent in houses in the street. For example, design features such as a verandah, front gable, window awning, bay window, face brickwork or stone details should be retained or re-instated to retain and reinforce the prevailing streetscape character.

P7 The design of new single dwellings or alterations must incorporate characteristic features prevalent in houses in the street. For example, design features such as verandah, bay window, gable or main entry must be sympathetic and contribute to the prevailing streetscape character.

Two Storey Development

P8 A full two storey single dwelling would not be considered appropriate where surrounding single dwellings are mostly single storey. However, a part two storey single dwelling may be considered if the first floor is setback a minimum of 9m behind the front building line of the ground floor and located behind the main roof form of the building.

P9 To better integrate a new first floor level into a single storey area, its height and bulk can be kept to a minimum by reducing the floor to ceiling heights, together with the use of raked ceilings and attic type rooms with suitably proportioned dormer windows, where appropriate. The style of dormer windows should be compatible with the style of the house.

Gardens, Landscaping and Fences

P10 Front and side gardens, driveway entries and paths must use similar materials and methods to reinforce existing streetscape character. Planting and landscaping methods should follow existing patterns of development to reinforce the contribution of front and side gardens to the prevailing character of the streetscape.

P11 Front and side return fences must be of similar height, material and style to be in character and scale with existing fences or those of adjoining houses and in the street generally and in conformity with the *Front and Side Fences* section of this DCP Part.

Location of Vehicle Access, Garaging and Car Parking

P12 Where there is suitable side access for new garages and outbuildings they should be located to the rear of the property.

P13 New carports may be located along a side driveway providing these are setback from the building frontage and back from any front or side verandah.

P14 Garage door openings including intermediate piers must not exceed 40% of the entire width of the front elevation of the single dwelling.

P15 Any paved car parking spaces and carport structures must be located behind the front building line. Access driveways are not precluded.

P16 New driveways, paved turning areas and paths visible from the street must not dominate the front garden or impact on the streetscape values. Paving materials must be compatible with general streetscape character in terms of materials, colour, texture and extent.

Advisory Note:
Further provisions relating to vehicle parking, garages and carports in respect to heritage items and properties in a heritage conservation area are to be found in Section 4.7.

Sunlight

Overview

Sunlight is an important component of residential amenity as it enhances people's sense of wellbeing, has a demonstrated psychological value and promotes the growth of gardens and plants. The sun can also provide thermal benefits and solar energy for generation of hot water and electricity. It is imperative that living spaces, structures, walls and roofs have maximum access to sunlight.

Objectives

O1 To ensure that new development allows adequate sunlight.

O2 To ensure that new development minimises loss of winter sun on adjoining premises.

Provisions

P1 All building work must minimise overshadowing to adjoining properties, particularly to the south.

P2 Two storey single dwellings must not eliminate solar access on adjacent smaller dwellings.

P3 The street configuration of certain lots in the Burwood LGA does not allow shadowing to be prevented. There will be some instances where dwellings may lose sunlight on narrow lots with an east to west axis this is notwithstanding that Council makes every effort to ensure reasonable solar access.

P4 Maximum use must be made of north facing areas for windows, outdoor recreation and clothes drying, etc.

P5 During the summer season, the sun is not to cause overheating in living areas of the single dwelling. This overheating can be reduced through effective methods such as insulation, reflective barriers and shading.

P6 The floor to ceiling height for the first floor level of the proposed single dwelling is not to exceed 2.6m, and the ground floor level is not to exceed 2.7m. However, the floor to ceiling height for the first floor level is required to be 2.4m in respect to a single dwelling in a Conservation Area or in respect to additions to a heritage item.

P7 Building floor levels must not be raised, where there is a slope to the site. Building heights are to be minimised by cutting of a site rather than filling.

P8 The southern elevation of the first floor building on the minimum setback is not to exceed 10m in length. Council will permit further extension if the wall is inset a further 2 metres as shown in **Figure 92**.

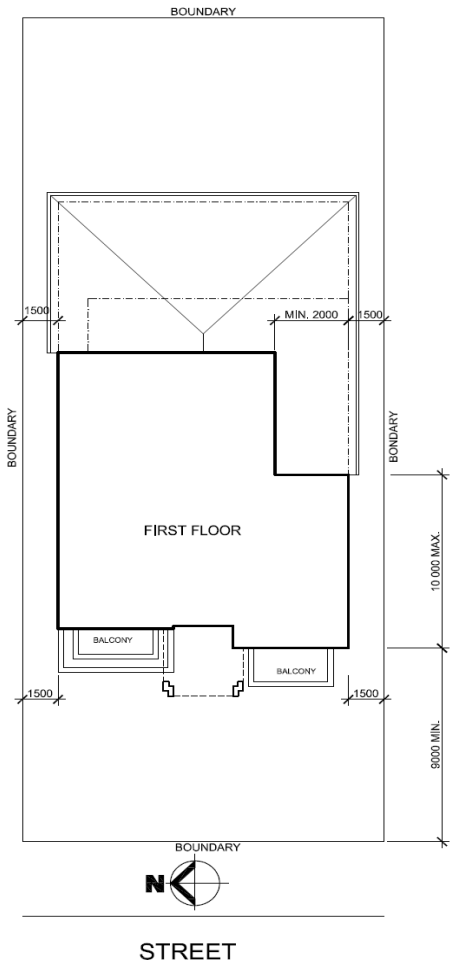


Figure 92. Setbacks to Minimise Overshadowing

Privacy

Overview

Private open spaces and living areas of adjacent dwellings should be protected from overlooking. Privacy refers to both visual and acoustic privacy. The design of a single dwelling should take into consideration the visual privacy of neighbours. The design considerations include fencing, windows and private open space as well as siting and internal layout of single dwellings.

Objective

O1 To maintain visual and acoustic privacy for adjacent and nearby residents.

Provisions

P1 Detailed site and building design elements should be incorporated to increase privacy without compromising access to natural light and air. Design detailing may include:

(i) Solid or semi-solid balustrades to balconies

(ii) Offset windows of dwellings

(iii) Recessed balconies and/or vertical fins

(iv) Louvres or screen panels to windows and/or balconies to minimise overlooking and maintain privacy between living areas and open recreation areas

(v) Fencing

(vi) Vegetation as a screen between spaces

(vii) Pergolas or shading devices to limit overlooking

P2 Living areas, including studies, at the first floor must have raised sill heights and/or translucent glazing of windows to minimise loss of privacy to adjoining single dwellings.

P3 Translucent or opaque windows must be provided to all bathrooms, en-suites, water closets (i.e. toilet), and stairwells.

P4 Building layouts must be designed in relation to window placement, sill heights and doors to maximise privacy and minimise noise effects.

P5 To provide sufficient privacy there must be adequate building separation.

Balconies

P6 Balconies are not to be located at first floor level where they overlook neighbour's outdoor living areas, unless adequate screening is implemented.

P7 Balconies are not permitted on the side elevation, with the exception of single dwellings located on corner blocks, i.e. the elevation facing the secondary street frontage.

P8 First floor balconies will not be permitted off living areas (bedroom access only) and must be of minimal dimensions. These balconies must not exceed a maximum width of 1.5 metres.

Height

Overview

The height of the single dwelling has a bearing on the visual and physical bulk and scale of the building. The height of the single dwelling should maintain consistency with the majority of the single dwellings in the street.

Objective

O1 To ensure that new single dwellings or alterations to existing single dwellings are in scale with and maintain the character of existing development in the street.

Provisions

P1 Single dwellings must not exceed 8.5 metres in height from the natural ground level to the ridge as measured vertically at any point.

P2 Notwithstanding P1 above, in particular circumstances there may be exceptions granted for steeper pitched roofs that do not detract from the aesthetics of the single dwelling.

P3 Single dwellings must not exceed two stories in height above the natural ground level. However, consideration may be given to a basement where such area has a ceiling height not exceeding 2.3 metres from the underside of the edge beam and is below existing ground level as described in **P5** below.

P4 The basement area must not be used as a habitable room.

P5 Basement areas must not exceed existing natural ground level by more than 750mm when measured to the top of the ground floor slab above the existing ground level.

P6 The basement wall must be designed so as to form an integral part of the building and not look like a basement wall from the external elevation.

P7 The basement shall be wholly within the footprint of the dwelling above.

P8 The floor to ceiling height of the first floor level is not to exceed 2.6 metres to minimise overshadowing and excessive height.

P9 The floor to ceiling height of the ground level of new development is not to exceed 2.7 metres.

P10 The ceiling height for attic rooms, rooms with a sloping ceiling or projections below ceiling lines, non-habitable rooms or the like must not interfere with the room or space's intended purpose.

P11 The floor to ceiling height of rooms must satisfy the requirements of the Building Code of Australia Housing Provisions Part 3.8.2.2 "Ceiling Height", and must ensure that the room or space is used for its intended purpose, and that the level of fire safety, health and amenity is not reduced.

P12 Building heights must relate to the general character of houses in the immediate locality and in the street.

Storage

P13 Storage areas in roofs of single dwellings are permitted as long as there are no permanent stairs and no dormer windows within the roof so as to ensure it does not appear as a habitable room. The roof may contain ventilated skylight windows.

Setbacks

Overview

Setbacks define the overall footprint of a building and the outer walls in relation to the front, side and rear boundaries. Appropriate street setback controls can contribute to the public domain by enhancing the streetscape character and the continuity of street facades.

Objectives

O1 To ensure that new single dwellings or alterations to existing single dwellings are of consistent scale and maintain the character of existing development in the street.

Provisions

P1 Single dwellings must comply with the minimum setback requirements as set out in the table below:

Table 3. Setback Requirements for Single Dwelling Houses

Front Setback	
(i) Two storey (second storey component of the dwelling only)	9m
(ii) Single storey	Average of localised existing building line
Side Setback	
(i) Two storey (second storey component of the dwelling only)	1.5m
(ii) Single storey	900mm
Except for the common wall of an attached dwelling or semi-detached dwelling	
Rear Setback	
(i) Two storey (second storey component of the dwelling only)	6m
(ii) Single storey	3m
Corner Property Setbacks	
(i) Main Street Setback	As per front setback for street to which property is rated, or the street with the narrower frontage.
(ii) Side Street Setback	As per side setback
(iii) Other two (2) boundaries	As per side and rear setback

P2 All single dwellings must provide an eave overhang. The minimum width of the eave including the gutter must be 450mm.

P3 Council may consider a variation to reduce the eave heights, provided that there is no increased overshadowing.

P4 Single dwellings must provide setbacks that are consistent with the existing setback.

P5 A reduced setback which utilises existing foundations may be acceptable for single storey dwellings.

P6 An increased front setback may be required for new building works that are bulkier than the existing single dwellings on the adjoining sites.

P7 The maximum length of a first floor elevation of a single dwelling is 10m along its southern elevation where it is provided as one continuous and uniform elevation (Refer to **Figure 92**).

P8 Where a first floor elevation is greater than 10m along the southern elevation, that part of the first floor elevation greater than 10m must be setback a further 2m from the side building line (Refer to **Figure 92**).

P9 Encroachments of up to 1.5m into the 9m front setback of the first floor level of a single dwelling may be approved for architectural elements such as bay windows, balconies, decorative timber and brick subject to the following:

(i) Minimal adverse impact on surrounding properties in terms of overshadowing and privacy

(ii) High quality architectural design

(iii) Variation to the front setback not to exceed 50% of the width and height of the first floor front elevation

P10 Ancillary structures such as garages, sheds and the like, that are attached to the dwelling on a site must be setback 900mm from the respective side boundary. Exceptions may be given for open structures such as carports, awnings and pergolas, subject to compliance with the Building Code of Australia requirements.

Floor Space Ratio and Built Area

Overview

Floor Space Ratio (FSR) and Built Area provisions aim to facilitate an acceptable bulk and scale of development. It is important to regulate the total size of single dwellings relative to allotment size in order to prevent over development.

Objectives

O1 To control the building bulk of single dwellings and additions.

O2 To prevent over development occurring in the Burwood LGA.

O3 To provide for a site layout that gives usable open area and a building form that is compatible in size with the surrounding areas.

Provisions

P1 The maximum Floor Space Ratio (FSR) is set out in the Floor Space Ratio Map. FSR and its calculation are defined in the BLEP 2012.

Advisory Note:
For calculating the Floor Space Ratio, it is important to consult the definition contained in clause 4.5(2) of the BLEP 2012, together with the definition of Gross Floor Area in the BLEP 2012 Dictionary. It should be noted that the calculation is taken from the internal face of walls and includes all buildings within a site.

P2 The maximum Built Area is 67%.

Built Area is determined to be the total floor area of all buildings relative to the area of the allotment of land, expressed as a percentage. The calculation of Built Area shall be taken from the external face of walls (i.e. includes wall thickness) and includes the area of each floor or storey balconies, verandahs and the like, whether covered or uncovered, open or enclosed garages, carports and covered parking (except basement car parking) and outbuildings. Built Area excludes outdoor swimming pools, paths and exterior driveways.

P3 Irrespective of the allotment size, Council does not generally favour single dwellings exceeding 450 sqm Built Area. Applicants should submit written justification in support of larger dwellings. Buildings above this size will generally only be allowed where the allotment size and the character of the existing development in the area so warrants.

P4 In an R1 and R3 zone, a maximum Built Area of over 67% may be considered having regard to the predominant land uses in the vicinity, their scale, the streetscape and the impact of the proposal on surrounding development.

Landscaped Areas

Overview

The aesthetic benefits of landscaping are well recognised and can be seen every day in gardens. Trees and plants add life, colour and variety. Landscaping can provide shade from the hot summer sun, screen unsightly views, protect us from strong winds, reduce both air and noise pollution, provide visual privacy, soften buildings or structures and attract native birds into a garden. Appropriate plantings on allotments can enhance the overall character of the street and add value to your property.

Objectives

O1 To ensure functional private outdoor spaces are provided for residents.

O2 To encourage the preservation and integration of existing trees and natural features into the design of new development.

O3 To screen and soften the impact of buildings and improve the view along the street.

O4 To maximise winter sun and minimise summer sun.

O5 To help minimise stormwater runoff.

Provisions

P1 A minimum 30% of the front setback (i.e. front yard) is to consist of soft landscaping.

P2 Rear yards will not be permitted to be dominated by hard landscaping. A minimum of 70% of the rear yard shall be soft landscaping.

P3 Paved or hard surfaces shall incorporate appropriate drainage to control water runoff and avoid nuisance to adjoining properties. Paving materials must be selected to blend with both building materials and plantings.

P4 Where practical, new structures must be positioned to provide for the retention and protection of existing significant trees and other natural features. Where removal of existing trees is proposed, details of suitable replacement trees are to be provided. These must be replaced at a rate of one new tree for each tree removed, or as otherwise specified by Council's Landscape Code.

P5 Cutting and filling is to be minimised as far as practicable. Fill material must be clean fill only and placed in such a manner so as not to disturb existing trees that are to be retained. The maximum permitted depth of fill on a site is 500mm.

P6 All Development Applications for new dwellings must be accompanied with a Landscape Plan as part of the application submission.

P7 All planting beds and mounds must be mulched to a depth of 50-75mm using coarse textured mulch.

P8 Plants that are declared priority under the Biosecurity Act 2015 must be identified and removed.

P9 The siting of new buildings, structures, driveways and other hard surface areas must take into consideration impacts on the root zone of existing trees.

P10 Tree species must be considered that provide shading in summer and solar access in winter.

P11 Plant species should be chosen which have low water requirements.

P12 New plantings must be complementary to the existing streetscape.

P13 Aboveground rainwater tanks must not be installed in the front setback. Consideration will be given to underground rainwater tanks in the front setback.

Utility Services

Objective

O1 To ensure that single dwellings are designed with water, sewerage and electricity requirements in mind.

Provisions

P1 All water and sewerage pipes and duct work must not be visible from a public place and must meet Sydney Water's requirements.

P2 Electricity power poles placed within the front yard of the house must be treated in colours that match the existing single dwelling and be to Council's satisfaction.

Drainage

Objective

O1 To ensure that new development does not result in flooding issues on the site or adjacent properties.

Provisions

P1 All drainage works must comply with Council's Stormwater Management Code.

P2 Existing natural overland stormwater flow paths must not be diverted by fencing, retaining walls, buildings, paved areas or any other form of construction.

P3 New hard paved surfaces must be kept to a minimum to prevent stormwater runoff.

P4 Stormwater runoff from roofs, hard surfaces, swimming pools and the like must be collected, piped and drained to the kerb or an inter-allotment drainage system. Charged lines are permitted, however these must be designed by a practicing Hydraulic Engineer.

P5 Pits and pumps are generally not permitted, except within basement garages.

P6 Absorption trenches are generally not permitted.

P7 Ground floor levels must be sufficiently elevated so as not to be subject to flooding.

P8 Soft landscaping and pervious surfaces must be maximised on the site.

P9 A stormwater concept plan is required to be submitted to Council in accordance with Council's Stormwater Management Code.

Swimming Pools

Objective

O1 To ensure that pools are properly located and secured in the interest of safety.

Provisions

P1 The private open space must be useable and reasonably sized to incorporate a swimming pool. The pool area must not utilise the remaining private open space.

P2 Pool equipment must be located so as to minimise excessive noise impacts.

P3 The siting of the pool must minimise noise impacts and water splash on neighbouring properties.

P4 The landscape design must provide summer shade for pool users.

P5 The swimming pool area shall be fenced in conformity with the Swimming Pools Act 1992, the Building Code of Australia (BCA) and Australian Standards AS 1926-2007 Part 1 and 2 – Swimming Pool Safety.

P6 Swimming pool fencing shall separate the pool from the dwelling, outbuildings, structures and any adjoining premises or public place.

P7 A minimum setback of 1m must be provided from the water edge of the pool to the boundary.

P8 Pools are not permitted in the front yard of a property.

P9 No ancillary or other structures are permitted within the fenced pool area, except for diving boards or pool filter equipment.

Fire Safety

Objective

O1 To ensure that all new building work provides for an acceptable level of safety for residents in case of fire.

Provisions

P1 External walls of single dwellings and other structures must be of fire resistant construction, and comply with the relevant provisions of the Building Code of Australia.

P2 Approved smoke alarms must be installed in accordance with the Building Code of Australia and Australian Standard AS 3786-1993 - Smoke Alarms.

P3 Effective setback and/or protection of structures from fire source features must be in accordance with the Building Code of Australia.

Advisory Note:
Please refer to Building Code of Australia for further information on fire safety.

Demolition

Objective

O1 To ensure that the demolition of structures is carried out in an effective manner without affecting the health and amenity of the surrounding residents.

Provisions

P1 All demolition must be carried out in accordance with Australian Standard AS 2601-2001- The Demolition of Structures.

P2 All building materials containing asbestos must be carefully handled and removed from the site in accordance with WorkCover requirements.

P3 To minimise dust and debris that cause an unnecessary hazard and/or damage to surrounding properties, appropriate protective measures must be taken.

P4 To minimise sediment movement and water pollution due to surface run off, protective environmental site management measures must be employed on site.

P5 To minimise damage to street trees, footpaths, kerbing and road pavements, protective measures must be employed.

Earthworks

Objectives

O1 To ensure that site works are safe and environmentally sound.

O2 To ensure that adjoining residents are not detrimentally affected by the removal of soil or rock.

Provisions

P1 Adequate sedimentation control measures must be provided around sites to prevent polluted surface run off reaching water course or adjoining land, prior to the commencement of any work.

P2 To prevent earthworks from becoming dangerous to life or property, excavation must be adequately shored and guarded.

P3 Batters or underpinning of excavation is required to protect structures on adjacent properties from ground surface movement.

P4 The details of excavation or filling of land must be included in the Development Application.

P5 A dilapidation survey may be required to be carried out for excavations.

P6 In excavated areas after rain periods, seepage, or the ponding of water must be collected and disposed of in an appropriate manner.

P7 The maximum permitted depth of fill on a site is 500mm. Cutting and filling is to be minimised as far as practicable. Fill materials must be clean fill only and placed in such a manner so as not to disturb existing trees that are to be retained.

4.5.3 Ancillary Structures

Overview

Garages, carports and other ancillary structures should be designed as part of a holistic approach to the property rather than in isolation. It is important that garages and carports do not dominate the appearance of a dwelling from the street frontage and do not compromise the aesthetic relationship of the front garden and the streetscape.

Advisory Note:
There are further provisions relating to vehicle parking, garages and carports in respect to heritage items and properties in a heritage conservation area. (Refer to Section 4.7)

4.5.3.1 Garages

Objectives

O1 To recognise the needs of residents to erect garages.

O2 To minimise the size, bulk and scale of garages.

Provisions

P1 Garages must not be erected within the established dwelling setbacks and the street alignment.

P2 Garage floor to ceiling height must not exceed 2.5m.

P3 The height of the garage door must not exceed 2.1m.

P4 The external wall height must not exceed 2.7m above natural ground level.

P5 The slope of the roof of a garage must not exceed 25 degrees to the horizontal.

P6 Where the proposed detached garage is given special permission to be closer than 450mm to the rear or side boundaries, a peg out survey showing the footprint of the building must be undertaken prior to the pouring of the footings/slab, and a final survey report showing the exact location of eaves and gutters to the boundaries must be submitted to Council or the Principal Certifying Authority upon completion.

P7 Garage door openings including intermediate piers must not exceed 40% of the entire width of the front elevation of the single dwelling.

P8 To prevent domination of the front elevation, attached garages must be setback further from the single dwelling.

P9 Where a double garage is proposed forward, or within the front, of a single dwelling, the double garage doors must face the side boundary and have an adequate turning

circle for safe entry and exit to the garage. Garage wall facades facing the street must incorporate residential architectural features such as windows.

P10 A minimum 900mm side and 3m rear boundary setback is required for garage walls attached to a single dwelling.

P11 Council will not require written concurrence from an adjoining property owner to erect a garage adjacent to a boundary where the proposed garage is of masonry construction and is set back a minimum distance of 150mm from the respective side or rear boundary so as to enable the erection of a dividing fence.

P12 Clad walls must be set back a minimum of 450mm from the side and rear boundaries to enable maintenance to be carried out.

P13 Notwithstanding P11 and P12 above, any garage or outbuilding with a floor area of 60 sqm or more, or a continuous wall length of 8m or more, must be a minimum of 900mm off all side and rear boundaries.

P14 Where a garage constructed of brick is located adjacent to the boundary, no openings will be permitted on the wall located on the boundary for privacy and acoustic reasons.

P15 Garages must be designed to be sympathetic to the existing character and design of the single dwelling in terms of roof pitch, materials and finishes.

P16 Cladding must consist of masonry, sheet metal (e.g. Colorbond), painted Zincalume or similar non reflective material. These materials must be compatible with the single dwelling on the site and consistent with the character of the immediate environment.

P17 Roof cladding must consist of tiles, slates, sheet metal (e.g. Colorbond), painted zincalume, metal or other approved non-reflective roof material. These materials must be compatible with the single dwelling on the site and be consistent with the character of the immediate environment.

P18 The colours of roof and wall cladding must generally be of neutral tones, compatible with the single dwelling on the site and environmentally sensitive so as to minimise visual impact on the area.

P19 Garages are subject to a stormwater concept plan and stormwater must be collected, piped and drained to the kerb or inter – allotment drainage system in accordance with the Stormwater Management Code. A Stormwater Concept Plan in accordance with Council's Stormwater Management Code is to be submitted with DA's for any ancillary structures.

P20 Garages with vehicular access from side or rear lanes and streets must have a minimum front, rear or both boundary setback of 1.4m. Any fencing between the garage and the alignment on this boundary must be splayed at a 45° angle.

P21 Basement garages must be confined to the building envelope. Adequate provision must be made for a deep soil zone and landscaped area.

P22 Garages must not be used or adapted for residential, industrial or commercial purposes without prior Council approval.

P23 Amenities such as a shower, toilet or hand wash basin will only be permitted to be installed within a garage under specific circumstances, and at Council's discretion. Access to these amenities shall be by an externally-accessed door (e.g. opening onto

the rear yard), as opposed to being accessed from the interior garage space, such to discourage use of the structure as a separate dwelling.

P24 Studios or habitable rooms will not be permitted above a detached garage or outbuilding. The use of the roof space for storage may be permitted subject to the provision of non-permanent access (e.g. pull-down ladder) and Council's satisfaction that the storage space does not contribute to the scale or bulk of the structure, nor adversely affect the amenity of neighbouring properties.

4.5.3.2 Carports

Objectives

O1 To achieve a design that is sympathetic with the streetscape and the subject and adjoining single dwellings.

O2 To recognise the needs of residents to erect carports.

O3 To minimise the size, bulk and scale of carports.

Provisions

Carports Behind Building Line

P1 It is preferable that carports be erected in the rear yard of a property and not be erected between the wall of a single dwelling and the side boundary of the allotment.

P2 Where a carport is erected on the side of the single dwelling:

It may be attached to the side wall of the single dwelling and extend to the boundary line.

The carport roofline must be set back 500mm from the side boundary line. Supporting posts and beams are permitted adjacent to the boundary. Refer to Part 3.7.1.6 of the Building Code of Australia (BCA) for further information.

The carport must stand clear of a side boundary fence (i.e. carports must not be attached to the fence) and there must be a clear space between the underside of the roof structure and any fence.

Where it adjoins the side wall of a single dwelling, it must not be infilled at its side or ends.

It may be enclosed at the front with open ornamental-type metal gates for security purposes.

Carport Forward of the Building Line

P3 Carports may be permitted between the building line and the street alignment provided:

- The driveway to the rear of the site is less than 2.4m wide.
- The driveway width to the rear of the site is between 2.4m and 2.6m, but it is not feasible to provide parking in the rear yard.
- Where a side boundary fence exists or is proposed, the carport must stand clear of such a fence (i.e. it must not be attached to the fence) and there must be a clear space between the underside of the roof structure and any fence.

- There is no interference or obstruction to the natural lighting or ventilation of the subject and adjoining single dwellings.
- There is no interference or obstruction to users of the roadway or pedestrians.
- The carport must not be enclosed.
- Any gates must not open onto the footpath.
- The carport must be compatible with the streetscape.
- The carport must not adversely affect the style and character of the front façade of the building.

Advisory Note:
Separate provisions apply to a carport if it pertains to a heritage item or a property within a heritage conservation area.

Carport Dimensions

P4 Minimum dimension for a carport must be 5m x 2.5m.

P5 Maximum dimension for a carport must be 6m x 3m.

P6 Maximum height of a carport must be 2.4m, measured from the floor level to the outside surface of the roof cover.

Vehicular Access via Side or Rear Lanes

P7 Carports with vehicular access from side or rear lanes and streets must have a minimum boundary setback of 1.4m. Any fencing between the carport and the alignment must be splayed at a 45-degree angle.

Design

P8 Consideration must be given to the design and appearance of a carport and its effect upon the general appearance of the single dwelling and the streetscape.

P9 Carports located in front of or near the front of the single dwelling must have supporting posts that are architecturally compatible with the single dwelling. These supporting posts must have a 50mm diameter or 50mm square metal section

Levels

P10 Where the carport is proposed to be located near the street alignment, the levels of a carport floor must be obtained from Council's Assets, Design and Contracts section and must be strictly adhered to.

4.5.3.3 Other Ancillary Structures

General

Objectives

O1 To recognise the needs of residents to erect ancillary structures.

O2 To minimise the size, bulk and scale of ancillary structures.

O3 To provide clear provisions for other ancillary structures that do not include garages or carports.

Provisions

P1 Any garage or outbuilding with a floor area of 60 sqaurre metres more, or a continuous wall length of 8 metres or more, must be setback a minimum of 900mm from all side and rear boundaries. This control seeks to limit the impact of substantial outbuildings on adjoining properties, and discourages outbuildings which are in close proximity to multiple boundaries. This control will also be applied to any new work where the combined floor area of all outbuildings exceeds 60 square metres.

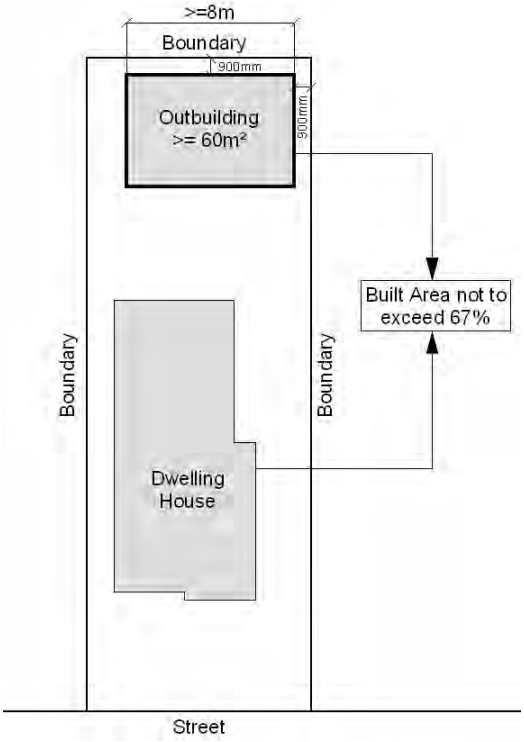


Figure 93. Boundary Setbacks for Substantial Outbuildings

P2 Where multiple ancillary structures are proposed upon a property, combining these uses within a single structure is encouraged.

P3 The controls applying to garages will generally be applied to other ancillary structures, such as sheds, studios, cabanas and the like.

P4 Amenities such as a shower, toilet or hand wash basin will only be permitted to be installed within an outbuilding under specific circumstances, and at Council's discretion. Access to these amenities shall be by an externally-accessed door (e.g. opening onto the rear yard), as opposed to being accessed from the interior space, such to discourage use of the structure as a separate dwelling.

4.5.3.4 Front and Side Fences

Objectives

O1 To ensure that fencing is appropriate to the scale and character of the street, as well as the single dwelling.

Advisory Note:
There may be additional provisions which apply to a fence if it pertains to a heritage item or a property within a heritage conservation area. (Refer to 4.7)

Provisions

Consideration of Development Applications Generally

P1 In dealing with a Development Application for a front and/or side fence, Council must consider the following before making its decision:

(i) the general appearance

(ii) its likely effect on adjoining properties

(iii) its likely effect on the streetscape

(iv) its likely effect on traffic

(v) whether the design of the fence is consistent with the external appearance of the house

(vi) the need for splays where vehicular entrances are involved

P2 Material and finishes must complement the style of the single dwelling.

P3 Demolition of fences is allowed without the approval of Council except for heritage properties (i.e. heritage conservation areas and heritage items).

P4 Fencing is not to impinge upon pedestrian and vehicular sightlines.

P5 Where a Development Application relates to a corner allotment, the corner must be splayed to the satisfaction of Council's Traffic and Transport section. A fence in such a position will not be permitted if its erection will create a traffic hazard.

Height

P6 The height of front fencing measured from existing ground level and taken from the public footpath side, shall satisfy the following:

(i) The maximum height of a picket or other similar open style fencing is 1.2m.

(ii) The maximum height of masonry or solid form fencing is 900mm. This includes courtyard fences where the courtyard is on or near the street alignment and not constructed or setback as provided in items (iii) and (iv) below.

(iii) 1.8m front fencing is permitted provided that this fencing is of a design where brickwork does not exceed 900mm in height and the remaining height is open style construction. Exceptions may be granted on arterial roads such as Liverpool Road, The Boulevarde, Coronation Parade, Burwood Road, Georges River Road and Parramatta Road.

(iv) A straight flush 1.8m high fence is not acceptable. Notwithstanding P6 (iii), 1.8m high fences may be permitted subject to articulation above or the provision of landscaping to provide visual relief. Alternatively, the fence is set back at least 1.5m from the street alignment.

Materials

P7 The external face of the fence must be of a good quality, with a low maintenance finish.

Landscaping

P8 The area between a fence and the street alignment must be suitably landscaped with low maintenance landscaping.

Levels

P9 Footings for front fencing must be constructed at or below footpath alignment levels and must not encroach on the footpath as set out by Council's Assets, Design and Contracts section.

Side Boundary Fences

P10 Side boundary fences must taper (reduce) in height where they are located forward of the front building line to the point where they meet the front boundary fencing.

P11 Side boundary fences forward of the building line may be of low ornamental type fences, open style fences or fencing of the same height and design of those approved for the front property boundary.

P12 Side boundary fences are not to exceed 1.8m in height behind the single dwelling and must not be constructed of pressed metal or exposed concrete block work.

Attached and Semi-Detached Dwellings

P13 Common walls on the boundary will only be permitted where proposed in connection with an attached dwelling or semi-detached dwelling development, and where the DA comprises redevelopment of both sides of the shared boundary.

P14 Council encourages fence designs which apply to all frontages within an attached and semi-detached dwelling development.

P15 Cross easements for support and stormwater drainage must be created where necessary and be in place prior to the issue of an Occupation Certificate.

P16 Fire rating and sound transmission characteristics of common walls must comply with the BCA/NCC.

Advisory Note:
Attached and semi-detached dwellings are required to comply with all other provisions of Section 4.5 of the BDCP

Security

P17 Front gates must be on, or close to, the front boundary or the front of the building. They must also be visible from front windows.

P18 Fence design must avoid creating entrapment spots.

P19 Surface treatment of fences must use vandal resistant treatments such as paint and stain resistant finishes.

P20 Double glazing must be considered as an alternative to a high solid fence to achieve noise insulation.

Advisory Note:
The provisions of the Dividing Fences Act are to be observed in regard to fences, on the dividing boundary between two properties.

4.6 Transport and Parking in Residential Developments

Strategic Approach

Development in all of the zones under the BLEP 2012 will, over time and to differing extents, add to the demand for travel, and place additional pressure on the transport system and parking supply in the Burwood LGA.

Local policy on transport, traffic and parking needs to respond to the challenges of providing on-site parking while managing impacts on neighbourhoods. Higher density developments especially in the R1 and R2 zones should assist in the management of travel demand through increased utilisation of Burwood's substantial public transport facilities, and of opportunities for mobility by walking and cycling.

Objectives

O1 Ensure the appropriate provision of secure and accessible parking supply to meet the needs of users in the residential zones.

O2 Increase the use of public transport, walking and cycling for trips generated by new development.

O3 Support Council's on-street parking strategy in the Burwood Public Parking Strategy 2010 and its successors in respect of land around the Town Centres.

O4 Require a broader assessment of transport, traffic and parking factors in the Development Application process.

O5 Ensure the design of parking areas of developments meets appropriate criteria for vehicular and pedestrian safety and personal security, and the needs of people with disabilities, and provides appropriate facilities for cyclists and pedestrians.

O6 Encourage the provision of parking supply that contributes to the enhancement of development on sites and the quality of the streetscape.

O7 Manage the impacts of impervious surfaces and the excavation of basements for residential developments and provide greater opportunity for deep soil planting.

Provisions

P1 **Basic parking requirement:** Development in the R1, R2 and R3 zones must provide parking spaces on site for each proposed land use in accordance with Table 4. All parking generated by the development is to be provided on site, including any visitors parking. Contributions in lieu of onsite provision of parking will not be accepted in residential zones.

P2 **Compliance with Australian Standards:** The design and construction of on-site:

- Parking areas and parking spaces
- Service and loading/unloading areas
- Access to, from and within these facilities

are to comply with the applicable Australian Standards. These Standards cover a range of technical requirements including design elements, dimensions, gradients,

headroom, curves, delivery and service areas, and special requirements for people with disabilities.

The applicable standards are the most recent versions (at the time of the application) of:

- AS 2890.1 Part 1: Off-street car parking.
- AS 2890.2 Part 2: Off-street commercial vehicle facilities.
- AS 2890.3 Part 3: Bicycle parking facilities.
- AS 2890.5 Part 5: On-street parking.
- AS 2890.6 Part 6: Off-street parking for people with disabilities.
- AS 1428.1: Design for access and mobility.
- AS 1735.12: Lifts, escalators and moving walks - Facilities for persons with disabilities.

P3 Other requirements for single dwelling houses and development involving two dwellings on one allotment in Residential zones:

- Generally only one driveway per property is permitted.
- Circular driveways will be permitted on large lots that have a minimum site area of 900m² and have a minimum street frontage of 20m. The circular driveway where appropriate must also address controls within the BDCP such as Building Appearance, Streetscape, Heritage, Landscaped Areas, Vehicle Footpath Crossing, Garages and Carports.
- Paving of vehicular access ways and car parking spaces must be kept to a minimum to maximise soft landscaping and minimise stormwater runoff.
- Excavations for basement garage must be limited to the perimeter of the proposed dwelling(s). Exceptions may be given to narrow sites (less than 11m in width).

P4 Other requirements for residential flat buildings, multi dwelling housing and shop top housing in Residential zones:

- Parking spaces shall not be permitted above the ground, between the building and the street alignment.
- Where car parking spaces are provided below the natural ground level of the site, and roofed over and reinstated with lawn and landscaping, the reinstated roof area shall not project more than 0.75m above the adjoining natural ground level and shall be blended into the site, to the satisfaction of Council.
- Garage doors shall not dominate the front elevation of the development, shall be of a scale and position so as to create visual interest and not conflict with the character of other residential buildings in the street.
- Garage entrances shall be located to the side wall behind the façade main wall of the building, or to the rear of the allotment. If an entrance is at the front of the building facing the street, it must have an automatic closing door to conceal the opening from any public place.
- All car parking spaces, garages and vehicle manoeuvring driveways shall be designed so that vehicles can easily enter and leave the premises by movement in a forward direction.

- Where large areas of paving are required for driveways, turning and parking areas, these shall be treated with a variation of paving, inter-planting with grass in perforated cellular slabs or landscaping to give a visual break to such areas.
- Vehicular access points must have high quality finishes to walls and ceilings as well as high standard detailing. Service ducts or pipes must not be visible from the street.
- Proposals to extend basement parking levels from private development sites into the areas of Council's road reserves will not be supported. This is due to the practical, technical and legal constraints and complexities in implementation of this action by both Council and the private site developer.

P5 Vehicular Access and Footpath Crossings

- Vehicular access for development must be provided from lanes and minor or secondary streets where available, rather than major streets or Classified Roads.
- Vehicular access and footpath crossings must be minimised where provided the safety of pedestrians and cyclists must be maintained and there should be no more impacts on bus operations.
- Vehicular access must have a nominal width of 2.7 metres over the footpath, and be perpendicular to the kerb alignment.

P6 Automated or Mechanical Car Stacking

Installation of automated or mechanical car parking systems to meet car parking requirements for developments is not supported. Experience with and observation of these systems indicates significant potential for adverse impacts arising from slow operation causing vehicle queuing, vehicle size constraints that are not appropriate in Australia, and unreliability in cases of mechanical, hydraulic or electrical failure. Provision of free-standing spaces accessed by ramps is preferred. If restricted site size limits provision of traditional on-site parking, consideration should be given to consolidation of lots to create a larger development site.

P7 Plans and reports on transport, traffic and parking to support Development Applications: To provide adequate information for the assessment of proposals, Development Applications are to be supported by one of the following reports, depending on the scale and impact of the proposal.

1. *Major Development - Transport, Traffic and Parking Impact Report and Management Plans*

   Major Development, for the purposes of this subsection, means any residential accommodation (as defined in the BLEP 2012) comprising 30 or more dwellings on the one site, or as otherwise determined by Council for development in a Residential zone.

   A Development Application for Major Development in a Residential zone is to be accompanied by a Transport, Traffic and Parking Impact Report and Management Plan prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters:
   - The proposed development and its suitability in terms of transport, traffic and parking impact
   - The existing parking and traffic conditions
   - The proposed traffic, parking and vehicle access arrangements
   - The accessibility of public transport services, and walking and cycling facilities
   - The impact of the development on the surrounding street network and intended measures to ameliorate or manage that impact

▪ The impact of the proposed development on the efficient and safe operation of bus services and passenger access ▪ The design and compliance with the applicable Australian Standards in P2 above ▪ Pedestrian and cyclist safety, personal security and safe access from parking areas to activities on the site ▪ Signage and visual accessibility during day and night periods ▪ Provision for loading, unloading and service vehicles ▪ Provision for parking of bicycles and facilities for use of cyclists ▪ A management plan covering management of traffic impacts and intended measures to encourage public transport use, walking and cycling, and to manage travel demand ▪ Consistency with general aims and zone objectives of the BLEP 2012 ▪ Consistency with the aims and objectives of this BDCP set out in Section 2 ▪ Compliance with the applicable requirements of this BDCP Part.
2. *Other Development - Transport, Traffic and Parking Impact Report* A Development Application in a Residential zone which is not Major Development (and excluding small scale residential development comprising 1-2 dwellings or other small scale development as determined by Council) is to be accompanied by a Transport, Traffic and Parking Impact Report prepared by a suitably qualified and experienced professional in traffic and transport, addressing the following matters: ▪ The proposed development ▪ The existing parking and traffic conditions and public transport conditions ▪ The proposed traffic, parking and access arrangements ▪ The impact of the development on traffic conditions in the surrounding street network and intended measures to ameliorate or manage that impact ▪ The intended measures to encourage public transport use, walking and cycling, and reduce the use of private motor cars ▪ Compliance with the applicable requirements of this BDCP ▪ Consistency with the aims and objectives of this BDCP set out in Section 2.

P8 Cycling

Increased use of cycle travel to, from and within Burwood's Residential zones can help reduce reliance on private cars and improve public health. Burwood Council and the Inner West Sub-region have suitable terrain and the network of local and regional cycle paths is under continuous improvement. The following requirements apply:

- Standards for the number of bicycle parking facilities are provided in Cycling Aspects of Austroads Guides (Austroads and Standards Australia 1999) and Planning Guidelines for Walking and Cycling (Department of Planning and the Roads and Traffic Authority 2004) developments must demonstrate compliance with the requirements of either of these publications.
- Design of bicycle parking facilities (racks and lockers) must be in accordance with the provisions of Australian Standard 2890.3 – Parking Facilities or Cycling Aspects of Austroads Guides.
- Bicycle parking devices must meet the following general requirements:
  - Enable wheels and frame to be locked to the device without damaging the vehicle.
  - Be well located and lit for security purposes.
  - Be in a convenient and accessible location outside pedestrian and vehicle movement paths.
  - Be protected from motor vehicle movements and useable without damaging other bicycles.
  - Be protected from the weather.

- Designed to fit in with the development.

P9 Active Travel Demand Management

Travel demand management initiatives should be employed in substantial new developments in Residential zones to reduce car based travel and make greater use of public transport, cycling, walking and car sharing for commuting and work related journeys. The objective is to ensure that substantial developments assess their impacts on travel demand and incorporate measures to encourage more sustainable travel.

- Development that comprises Major Development must include a Travel Demand Management section in the Transport, Traffic and Parking Impact Report and Management Plan to accompany the DA. Major Development is as defined in P6 above.
- Examples of initiatives to be considered in the section include:
  - Ensuring pedestrian safety and personal security within the development.
  - Providing bicycle parking facilities, with adequate access and personal security.
  - Making information available for occupants about public transport options available in the Burwood area that are relevant to the development.

Table 4. Car Parking Rates in Residential Zones

Applies to zones:

R1 General Residential

R2 Low Density Residential

R3 Medium Density Residential

Land Use	**Car Parking Rates Applying Where The Land Use Is Permitted In The Zones** **General** - The stated parking provision rates are the minimum requirement, except where indicated otherwise for a specific land use. - Calculation of the number of parking spaces required for a development is determined by rounding up to the nearest whole number where the decimal point is 0.5 and above, or rounded down to the nearest whole number where the decimal point is below 0.5. - All parking is to be provided on the site of the development unless where indicated otherwise for a specific land use. - In all cases the square metre areas in the Table refer to gross floor area as defined in the BLEP 2012.	**Notes and other requirements** **NB:** All parking for all developments in residential zones must be provided on site
Residential Accommodation Category and Related		
Dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies	▪ One space per dwelling	

Multi dwelling housing, residential flat buildings, shop top housing	Parking for residents ▪ One space per unit up to two bedrooms (including studio or bed-sitter units) ▪ Two spaces per three or more bedroom unit. Parking for visitors to residents of the development ▪ One space per five units	▪ These rates are the minimum and maximum requirements ▪ For the purposes of calculating visitors parking, a studio or bedsitter unit is counted as half a unit
Boarding house, Co-living housing	▪ Car Parking for residents – refer to the Housing SEPP ▪ Bicycle parking – one space per five rooms or part thereof ▪ Motorcycle parking – one space per five rooms or part thereof	
Seniors housing	Refer to parking requirements specified in State Environmental Planning Policy – Housing for Seniors or People with a Disability 2004.	
Group homes	Refer to parking requirements specified in State Environmental Planning Policy (Affordable Rental Housing) 2009	
Home businesses and home industries	▪ As per requirements for dwelling houses, attached dwellings, semi-detached dwellings, secondary dwellings, dual occupancies ▪ Plus one space for employees not residing on site	
Tourist and Visitor Accommodation Category and Related		
Bed and breakfast accommodation	▪ One space per accommodation unit ▪ Two spaces for employees involved in the Tourist and visitor accommodation business	
Serviced apartments		
Other not defined		
Commercial Premises Category and Related		
Retail Premises Subgroup and Related		
Neighbourhood shops	▪ One space per 50 sqm in all zones	
Community Category and Related		
Educational establishments	▪ For primary and secondary schools - one space per classroom ▪ For tertiary establishments in Business zones – as for Business premises in the zone ▪ For tertiary establishments in other zones - - Where the site is within 400m of a rail station, as for Business premises in the Business zone adjacent to the station - Where the site is more than 400m from a rail station, one space per full time equivalent employee and one space per 10 students	
Child care centres	▪ As per the RTA Guide to Traffic Generating Developments, 2002 Section 5.12.3 – Child	

	care centres, the following parking rates apply: ▪ If child care centre is located within 400m of a metropolitan train station: - 1 space per 10 children and 1 space per 2 staff ▪ In all other areas: - 1 space per 4 children	
Community facilities	▪ As determined by Council's Management Plan for the specific facility	
Places of public worship	▪ One space per 10 seats where fixed seating is provided ▪ One space per 18 sqm where fixed seating is not provided	▪ These rates are the minimum and maximum requirements
Respite day care centres	▪ One space per four persons of maximum capacity ▪ Access and turning facilities for short-stay set-down and pick-up of attendees	
Recreation areas Recreation facilities (indoor)	▪ As determined case-by-case on the basis of a Transport, Traffic and Parking Impact Report and Management Plan prepared by the applicant	
Health Services Facilities Subgroup		
Health consulting rooms medical centres	▪ Four spaces per health care professional (doctor, dentist or other) being one space for the health care professional, one space for an employee and two spaces for patients	
Hospitals	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable prepared by the applicant	▪ Council may obtain a peer review of the Report at the applicant's expense
Miscellaneous		
Any land use or activity not covered by any of the above	▪ As determined by Council having regard to a Transport, Traffic and Parking Impact Report and Management Plan, or a Transport, Traffic and Parking Impact Report, as applicable	
Mixed uses	▪ As determined from this Table for the requirements of the individual land uses involved	

4.7 Heritage in Residential Precincts

4.7.1 Introduction

This section applies to the development of heritage items (including potential or draft heritage items), properties in a Heritage Conservation Area, and development in the vicinity of a heritage item or conservation area where the developable property or heritage property is located in a residential area.

A reference to 'heritage property' herein means a property containing a heritage item, potential or draft heritage item, or a property within a Heritage Conservation Area. Heritage items and heritage conservation areas are listed in Schedule 5 of the BLEP 2012.

A reference to a 'contributory item' herein, means a heritage property within a Conservation Area which is:

- A heritage item; or
- A property which contributes positively to the heritage setting and character of the conservation area, based on its architectural style, character and/or time period.

The property may be highly intact, have sympathetic layers of alteration, or alterations which are reasonably reversible or which do not detract from the setting. In general, where the broad form of the original design remains legible, the property will be considered contributory.

Where a development involves business, commercial or office activities, the heritage controls under Section 3.8 may also be applied.

4.7.2 Heritage Controls

It is important to conserve the heritage properties in the Burwood LGA. Many of these properties are dwelling houses that are located in a residential precinct or conservation area of similar buildings, or they may be individual houses which have been heritage listed by virtue of their own significance. In conserving our heritage, Council seeks to ensure that future generations will be able to understand and visualise Burwood's past through the physical evidence of important buildings, places and development patterns.

Where alterations and additions are proposed to heritage properties, the works should be sympathetic to the heritage significance of the property. Alterations and additions should be undertaken in such a way that minimise impacts on the heritage property. Demolition of heritage properties is generally discouraged.

The Appian Way Heritage Conservation Area and Malvern Hill Heritage Conservation Area represent Burwood's longest established and possibly most intact conservation precincts. Additional controls apply to these two precincts. (Refer to Section 4.7.4)

Objectives

O1 Retain and conserve heritage items and contributory items within heritage conservation areas and maintain their heritage significance.

O2 Ensure that alterations or additions to heritage listed buildings and contributory items within heritage conservation areas are sympathetic to the heritage significance of the property and do not detract from the character of the streetscape.

O3 Ensure that alterations or additions to heritage listed buildings and contributory items within heritage conservation areas reflect the predominant scale, height, proportion, character and setbacks of the existing building, and surrounding development.

O4 Ensure development in the vicinity of a heritage item or heritage conservation area is designed and sited to protect the heritage significance of the item or heritage conservation area.

O5 Retain the original subdivision and building patterns of heritage conservation areas and heritage listed properties.

O6 Ensure that subdivision or amalgamation of lots does not result in adverse impacts on the curtilages or settings of heritage items or contributory items in heritage conservation areas.

Provisions

General

P1 Development Applications that propose alterations or additions to, or demolition of, a heritage property are required to submit a heritage report, known as a Heritage Impact Statement (HIS), prepared by a qualified and recognised heritage professional as part of the application to Council. This report shall detail the impacts of the proposed development on the heritage significance of the property. Council may, at its discretion, require a Conservation Management Plan (CMP), instead of a HIS.

P2 Where substantial demolition is proposed, the HIS would be required to provide justification on heritage grounds and demonstrate that options for retention have been investigated. An assessment of significance must include a comparative analysis of the building in relation to others of its kind in the local area. Claims concerning physical condition are required to be supported by a Structural Engineer's report. Conclusions should be based upon the heritage significance of the property, not on the development potential of the land it is situated upon.

P3 Council will require the submission of a heritage statement, prepared in accordance with the NSW Heritage Branch guideline *Statements of Heritage Impact*, where development is proposed adjacent to a heritage property.

P4 Major re-development of a heritage property shall have regard to the NSW Heritage Branch's *Design in Context: Guidelines for Infill Development in the Historic Environment*.

P5 Where demolition is proposed of a non-contributory structure within a heritage conservation area, Council may require that the proposed replacement structure be submitted as part of the same Development Application in order to ensure sympathetic outcomes.

Building Design Considerations

P6 Development of a heritage property must:

(i) Be sympathetic in terms of its scale and character

(ii) Employ materials and detailing that responds to the traditional form and style of the existing structure

(iii) Provide adequate setbacks, and maintain a setting around the heritage property, to facilitate the item's interpretation.

P7 A heritage property that forms part of a group of similar buildings or is located in a heritage conservation area must be designed with strict regard to the predominant characteristics of the area in terms of building height, building and street alignment, building form, scale and architectural character.

P8 Alterations and additions to a heritage property must not dominate the character of the existing structure, nor be of excessive scale relative to the original building.

P9 Redevelopment shall be taken as an opportunity to remove unsympathetic work upon a heritage property, such as air conditioning units, or repair significant architectural elements. Redevelopment should also be used to reinstate lost building elements.

P10 New architectural elements, such as turrets, spires, domes and towers, should not be introduced into an existing building if such elements would dominate, or change the character of, the existing building.

Advisory Note:
The Building Appearance and Streetscape provisions of the Single Dwelling Houses section of the DCP also contain controls relevant to heritage properties.

Roofs

P11 The main roof form of the existing dwelling should be maintained. Alterations and additions should be located behind the existing main roof form. In cases of rear additions, it is usually appropriate that the roof is set lower than the existing roof ridge and marries-in to the existing roof form.

P12 In some instances it will be appropriate for new roofs or roof additions to match the existing roof pitch upon the heritage property. However in other cases, particularly Federation period houses, additions and ancillary buildings should provide a roof set at a lower pitch than the predominant roof form, in order to avoid dominating the main roof form and to provide differentiation from the original.

P13 The gable width of a roof pertaining to a detached garage or carport shall not be wider than the most prominent gable end pertaining to the existing house or building. It may be necessary to provide a broken roof form to limit the dominance of the ancillary structure.

P14 The introduction of new features in the street front elevation of the roof of a heritage property such as satellite dishes, air conditioners, rooftop antennae, solar water heaters, roof lights and skylights are not permitted.

P15 Original roof materials such as slate and Marseille terracotta tiles and key roof features such as chimneys should be retained or reinstated.

Roof Replacement

P16 Where it can be demonstrated that an existing original roof covering requires replacement due to significant deterioration and that repair is not practical, the replacement with “like-for-like” materials is encouraged.

Generally, terracotta tiled houses of the Federation and early Inter-War period will be required to replace the roof with *unglazed* terracotta tiles in a Marseille profile and natural “terracotta” colour.

Slate roofed houses should seek to retain the existing roof by transferring good slates from side and rear elevations to the front elevation, or through the use of second-hand materials with a similar aging pattern to the original material. Where replacement is inevitable, use of Welsh slates is encouraged, but consideration may also be given to the aforementioned terracotta tiles, or a suitable modern composite slate alternative where the change of materials can be justified on heritage grounds, and attention has been given to the profile, size, colour, finish and appearance of the replacement material.

P17 Replacement roofing shall be based on evidence of the period, style, traditional form and materials of the existing building.

P18 Roof details, such as finials and ridge capping, are to be maintained where possible, or replaced with matching elements.

Attic-Style and First Floor Additions

P19 'Rooms in roof' additions are permissible in the roof spaces of heritage properties subject to retaining the existing roof pitch and where the space is sufficient to accommodate attic rooms. Attention must be given to the style, size and location of roof windows. Such works are also required to meet the relevant height controls and habitation requirements set out in this DCP and the BCA.

P20 First floor additions are only permitted where these would not affect the single storey character of the existing structure.

P21 First floor additions must not dominate the existing structure as viewed from the street be setback as far as possible, and shall be designed to be visually recessive.

Advisory Note:
The Building Appearance and Streetscape provisions of the Single Dwelling Houses section of the DCP requires a first floor addition to be setback a minimum of 9m behind the front building line of the ground floor (i.e. the façade).

Floor to Ceiling Height

P22 The floor to ceiling height of the first floor level within a dwelling house, attached dwelling or semi-detached dwelling is not to exceed 2.4m to minimise the visual bulk and dominance of first floor additions.

Dormer Windows

P23 Dormer windows that are proposed in the roofs of heritage properties must be a traditional architectural feature of the style of dwelling house and must be designed so that the size, proportion, shape, design, location and finishes of the dormer windows are in harmony with the main roof of the dwelling house. Generally, dormer windows should be avoided on the street façade.

P24 Flush 'Velux-style' roof windows are often a more sympathetic alternative to a dormer window.

Street Fronted Facades

P25 The principal or street front façade of a heritage property must not be altered in any way other than to restore original features of the building or to remove previous unsympathetic alterations and additions.

P26 Original windows and doors must be retained or reinstated.

P27 New windows and doors, especially where visible from the street, must match the proportions, style and materials of existing window and door features that correspond to the architectural style of the dwelling house.

P28 The external wall finishes and treatments of the heritage property must match the architectural style of the dwelling house.

P29 Cement render of existing face brick walls is not permitted.

P30 Exterior fixtures, such as roller shutters, security bars, aluminium awnings, satellite dishes and air conditioning units, or similar devices shall not obscure significant architectural elements upon a heritage property's facade, nor detract from the character of buildings. Roller shutters and security bars will generally not be permitted.

P31 The landscaped front setting is an important component of a heritage property, especially where it retains existing contributory trees, plants, garden layouts and garden features such as tessellated tiled entrance paths. These features must be retained.

Verandahs

P32 The enclosure of original open verandahs is not permitted.

P33 The reinstatement of verandahs, whether simple or elaborate in decoration, must match the architectural style of the dwelling house.

Landscaping

P34 The front setback (i.e. front yard) of a heritage property shall provide minimal hardstand and/or hard surfaces in order to preserve its setting and visual appearance.

Views and Vistas

P35 Development of a heritage property, or development in its vicinity, must:

- Provide an adequate area of land around the development to allow interpretation of the significant building or place
- Not detract from the setting of the heritage property
- Retain and respect significant views/vistas from the public domain to a heritage property, as well as the views/vistas originating from the heritage property itself.

Terrace Buildings

P36 Development within a terrace group is to be designed with strict regard to the overall group in terms of height, alignment, form, scale, materials and architectural character.

New Development

P37 There are instances where new development may be built on the site of a heritage item, or within a heritage conservation area. Where this occurs, the new development must ensure it respects and interprets the predominant heritage character of that particular site or precinct.

P38 New development in an existing heritage conservation area must be compatible with and reflect the predominant stylistic features of properties in the heritage conservation area with respect to:

- Building bulk, height and proportion
- Scale and architectural style
- Integration into the streetscape and relationship with adjoining buildings
- Reflecting the building and street alignments
- Interpreting the materials and architectural detailing of the heritage conservation area.

P39 Where a garage is to be integrated into a new building, it must be setback from the front elevation so that it is a recessive component in the design.

Development in the Vicinity of a Heritage Property

P40 New development, or alterations and additions to existing development, that is located in the vicinity of a heritage property, must be designed and sited to:

- Have regard for, and be compatible with, the significance of the heritage property
- Reflect the bulk, scale, height and proportion of the heritage property
- Respect the front garden setting, any established setbacks, and views and vistas of the heritage property
- Be recessive in character and not dominate the heritage property
- Interpret the materials and architectural detailing of the heritage property
- Respond to the building alignment of the heritage property.

P40A Any development having three storeys or more which is contiguous to a heritage property will be expected to observe a 5m minimum setback from the heritage property's boundary (and 4m minimum setback for any below-ground excavation/basement).

The purpose of this setback is to:

- Provide for a sensitive separation of buildings and maintenance of a heritage item's setting, particularly the "open garden setting" and generous setbacks typical of heritage-listed houses. A setback will be required irrespective of the setback of the heritage building from its boundary.
- Enable deep soil landscaping and substantial trees to be accommodated on the development site to provide a landscape buffer. This requirement applies irrespective of whether there is existing landscaping on the heritage property.
- Limit the potential for excavation and construction works to negatively affect the structural stability of the heritage item, or affect established trees/landscaping within the heritage property.
- Not prejudice the future development of heritage properties, particularly extensions. It is important that heritage places remain viable into the future.
- Limit the opportunity for negative impacts upon the amenity (especially noise and visual privacy) enjoyed by the residents/occupants of the heritage property.

P40B Any development located on a site contiguous with a heritage property, shall have

regard to the following:

- The front setback area of the development is to maintain an open setting for the heritage item such as by way of a lower front fence height, sensitive location of the pedestrian access path/entrance, and landscaping. The "privatisation" of the front setback – characterised by courtyards, fences dividing private open space, multiple entries, and high walls – should be avoided. Structures (e.g. bin enclosures, covered letterboxes, fire stairs) should be avoided in the front setback.
- The location of driveways in close proximity to the heritage item's boundary is to be avoided. Driveways have the potential to adversely impact the amenity of the heritage property, its setting, cause excavation impacts, and reduce landscaping of the new development.
- The location of multiple courtyards or private open spaces along the boundary of the heritage item is to be avoided. This densification of use has the potential to impact the amenity of the heritage property's residents/occupants.

Subdivision

P41 Subdivision of an existing lot will not be permitted where it is proposing to subdivide the front portion (i.e. front yard) of a heritage items or contributory item in a heritage conservation area unless it can be demonstrated that the subdivision and associated new development will not:
i. obscure the existing heritage building and its curtilage, and
ii. negatively affect the property's setting, or alter the established subdivision pattern of development in that street and/or heritage conservation area.

P42 A proposed subdivision of an existing lot within a heritage conservation area will generally not be supported, unless the lots are of a size in area and dimensions which reflects the characteristics of historically relevant allotments adjoining and in the vicinity of the site and where the proposed subdivision does not adversely impact on the setting and curtilage of the significant building or place.

P43 Subdivision of a heritage property is generally not supported by virtue of the likely impact on the setting and curtilage of the significant building or place, and on account of limiting the ability of the heritage property to adapt to future needs on a significantly reduced lot size.

P44 Applications for the subdivision of an existing lot to create a new lot or site consolidation are to demonstrate that:
i. the setting of the heritage items on the site, or contributory items on the site or within the vicinity, are not compromised;
ii. the relationship between the heritage item or contributory item and associated features such as landscaping, trees, fences, and outbuildings are retained; and
iii. the heritage item or contributory item retains the ability to adapt to future needs on a smaller lot size.

P45 Where the subdivision or amalgamation of an existing lot is proposed the demolition of the heritage item or contributory item on the original lot will not be permitted.

P46 Where a heritage building forms part of a larger redevelopment, Council will generally require that repair or restorative work to the heritage building or place is undertaken prior to any subdivision or occupation. For instance, through a condition of consent requiring certain works prior to the issue of a Subdivision Certificate or Occupation Certificate. This approach seeks to ensure that the conservation of the heritage property is integral to the redevelopment.

Paint and Colour Schemes

P47 Painting over unpainted features such as external stonework and face brickwork of a heritage property is not permitted.

P48 New paint and heritage colour schemes must reflect the most significant design period of the heritage property.

Ancillary Structures and Vehicle Parking

P49 Carports and garages may be located on a heritage property in the following order:

- Where rear lane or secondary street access exists, the garage or carport must be accessed from the rear lane or secondary street.
- Where clause (i) above does not exist or is not achievable, the garage or carport must be sited to the rear of the property using the front entrance access.
- Where site constraints exist and only where it can be demonstrated that the garage or carport is unable to be located in accordance with clause (ii) above, as it may have insufficient width, the structure may be sited to the side of the dwelling house.

P50 Where a garage or carport is to be located to the side of an existing dwelling house, the structure must be located a minimum of 1m behind the front building line of the dwelling house. Where the house's façade features a front verandah, the verandahs depth is to be added to the aforementioned setback. The garage or carport should not result in the removal of original architectural features such as windows, window hoods or porches. Preference is for a carport, given its more open appearance, where the structure would be highly visible from the street.

P51 Garages, carports, garden sheds or similar structures shall not be permitted to be located forward of the building line by virtue of their negative impact on the character of the heritage property and/or the streetscape.

P52 In most instances, hardstand parking spaces that are proposed to be located forward of the building line shall not be permitted by virtue of their negative impact on the character of the heritage property and/or the streetscape. Hardstand parking spaces located forward of the building line will not be permitted where:

i. The potential for alternative on-site vehicle parking is available
ii. The existing house is setback 7m or less from the front boundary
iii. The property has a width at the street frontage of 15m or less
iv. The existing house has a side boundary setback of 2.4m or more, or
v. The combined area of all hardstand surfaces (e.g. paths, paving, driveway etc.) within the front yard would account for 50% or more of the front yard.

In exceptional circumstances, and at the exclusion of properties subject to above items (i) - (v), consideration may be given to a visually discreet and simple parallel strip hardstand area of minimum dimensions, with soft landscape treatment, where Council is satisfied that the hardstand area does not negatively impact upon the front setting of the heritage property and surrounding streetscape.

P53 Ancillary structures such as garages, carports, garden sheds and the like must complement the heritage property in terms of design and detailing, particularly where the structure is visible from the street.

P54 Garages and carports must use design detailing, materials and paint schemes that refer to and are compatible with the heritage property. Simply designed structures using lightweight materials, comprising of a simple form and using appropriate materials are preferable.

P55 The roofs of garages and carports must be simple in form and must not dominate or unduly contrast with the roof form of the heritage property. Ornate detailing and complex roof forms are generally inappropriate.

P56 Driveways shall not have a stencilled concrete finish. Pavers, plain or single- coloured concrete finishes are preferable in achieving a recessive appearance.

Rainwater Tanks

P57 Rainwater tanks must not be installed in the front garden or front setting of a heritage property.

P58 Rainwater tanks can be located along the side elevations of a heritage building, provided that these are setback at least 2m behind the building's front elevation.

P59 Where buildings have a front or wraparound verandah, the rainwater tank must be located a minimum 2m behind the verandah.

P60 Where a rainwater tank is visible from the street, heritage colours such as green or red are recommended, or a colour which otherwise complements the colours within the existing building.

4.7.3 Fences on Heritage Properties

Overview

Fences on heritage properties have the potential to contribute to the heritage significance of that place or precinct, as well as contribute to the streetscape presentation. It is important to ensure that front, side and rear boundary fencing on a heritage property is compatible with the building or area to which it relates.

Objectives

O1 To ensure that original and historically significant fences and gates are retained.

O2 To ensure that new fences are sympathetic to the character of the heritage property.

O3 To ensure new fences are in keeping with the period and style of the building.

O4 To ensure that new fences are designed to complement the streetscape.

Provisions

Fence Character and Design

P1 The removal of any fencing on a heritage property is not permitted without prior Council consent, unless it is exempt development.

P2 Original fences must be retained and repaired.

P3 Where it can be demonstrated that P2 above cannot be achieved and the original fence must be replaced, this fencing must be reconstructed with matching materials to match the original fencing.

P4 In the first instance, the design of new fencing should relate to the period and style of the building upon that property.

P5 Where new fencing is proposed in an established or heritage streetscape, the fencing must reflect the character, materials, height, rhythm of bays and openings, design and colour of the predominant fence design.

P6 Fencing details (including the plinth wall, pedestrian gates, support piers, driveways, gates and metal railings) must be compatible with the overall character and design of the fence.

P7 Where a site is sloped, the height of the fence shall comply with the maximum fence heights when measured perpendicular to the ground.

P8 Electric lights or light mechanisms are not permitted on any part of a heritage fence as they are not traditional features. Up lights and down lights, where appropriately positioned and concealed from public view, may be considered as an acceptable alternative for lighting a fence structure.

Advisory Note:
Reference can be made to books and historical photographs to guide the design of new fences and gates. If these resources are not available, the design of other fences in the locality may be an appropriate style guide, provided these belong to a house of a similar period.

Height of Front Boundary Fences

P9 The maximum height of open-style (e.g. timber picket) front boundary fencing is 1.2m above the adjacent footpath level. Where a fence is to be provided with a base course, this solid portion of the fence should not exceed a third of the overall fence height.

P10 The maximum height of solid or masonry front boundary fencing is 900mm above the adjacent footpath level.

P11 Only where associated with a Victorian period house, the maximum height of picket / railing style front boundary fencing is 1.7m above the adjacent footpath level. For the avoidance of doubt, fences upon non-Victorian properties are generally restricted to 1.2m in height, and the use of metal bars or picket / railing style fencing is not supported.

P12 Proposals to exceed the height limits (including piers) as outlined in P9, P10 and P11 above, must prove that the fence height corresponds and accords with the architectural style of the heritage property and/or continues an established pattern of heritage fences of a similar height.

Fence Materials

P13 Heritage properties of the Federation or Inter-War period should adopt timber and/or masonry materials which are characteristic of that period.

P14 Where new masonry front boundary fencing is proposed, the materials and design should match the colour and pattern of brickwork upon the existing building.

P15 The following materials are not permitted on a heritage property:

- Arc Mesh, metal pool-type bars or modern tubular bars/pickets.
- Concrete block.
- Sheet metal – flat or corrugated and/or coloured.
- Pressed metal coloured sections (e.g. Colorbond).
- Sheet material including plywood, chipboard, fibre cement and glass fibre.

P16 The painting or rendering of original masonry fencing is not supported.

Side and Rear Boundary Fences

P17 The maximum height of side and rear boundary fencing is 1.8m.

P18 Side boundary fences must taper (i.e. reduce) in height from the front building line to the point where it meets the front boundary fencing.

P19 Side and rear boundary fencing must employ timber materials with vertical close-boarded unpainted hardwood with hardwood posts and rails. The use of metal panel fencing (e.g. Colorbond) is not supported for heritage properties.

P20 Solid masonry side and rear boundary fencing will only be permitted in exceptional circumstances where it may be proven that the fence design continues a pre-existing pattern or character of such fencing.

Advisory Note:
The provisions of the Dividing Fences Act are to be observed in regard to fences, on the dividing boundary between two properties.

Lych Gates

P21 Elaborate lych gates are uncommon features in Burwood and will generally only be permitted where it can be demonstrated that the Lych gate was a pre-existing feature of the property, and where it is compatible with the character of the dwelling house or locality.

Examples of Fence and Gate Styles



Victorian Cast Iron Pickets and Gate



Federation Bungalow Timber Palings and Gate



Inter-War Bungalow Timber Paling Fence and Gate

4.8 Special Residential Precincts

4.8.1 Appian Way

Overview

The original Hoskins' Estate dating from the early 1900's consisted of 39 allotments, with 36 houses fronting Burwood Road, Appian Way and Liverpool Road plus a recreation reserve. The properties are large, ranging from a quarter acre to three-quarters of an acre, (0.1ha to 0.3ha), and irregularly shaped.



Figure 94. Original Plan Hoskins Estate

The Conservation Area currently comprises 41 houses, 31 of which are reasonably intact, a recreation area consisting of three lawn tennis courts with a weatherboard pavilion, and landscape elements such as street trees and picket fences. Five houses (nos. 70-78 Liverpool Road, southern side) within the Conservation Area are not in the Hoskins Estate but in the Austinlee Estate and three houses of the original estate fronting Liverpool Road are not in the Conservation Area.

A more detailed assessment of the significance of the Appian Way Heritage Conservation Area may be found at Appendix 8.5.

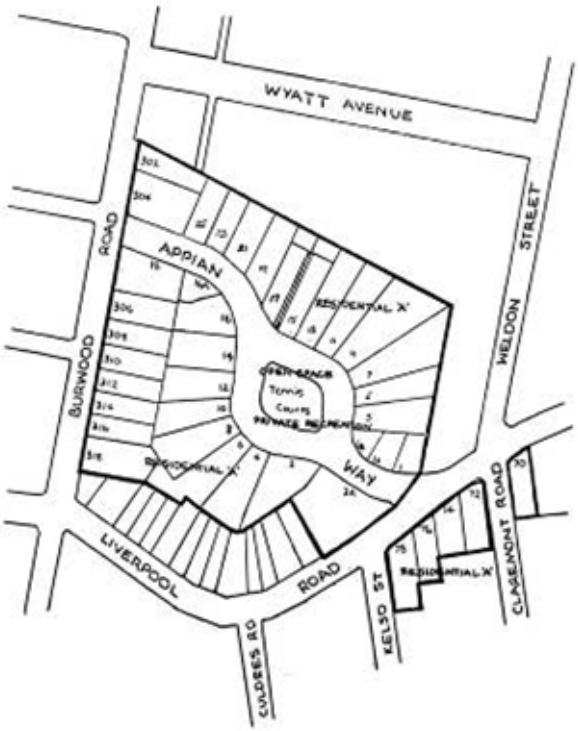


Figure 95. Appian Way Conservation Area

Objectives

O1 To provide appropriate and consistent policy guidance for future development:

(a) By ensuring permanent protection of the Conservation Area, including all existing structures, landscape features and relics, and the setting of the area.

(b) Which will result in the long-term conservation and enhancement of the historic, architectural, landscape and streetscape elements which contribute to the distinctive character and unique environment of the Conservation Area.

O2 To conserve the heritage significance of the Conservation Area and its setting.

O3 To increase the awareness of persons using the BDCP about the significance of the Conservation Area and the role of development in that context.

O4 To conserve and/or enhance existing buildings, structures and works in the Conservation Area.

O5 To retain and/or reinstate the characteristic architectural, landscape and streetscape elements of the Conservation Area.

O6 To ensure that new development will safeguard the historic, cultural, social, architectural or aesthetic significance of the building, work or site as well as the streetscape of the area.

O7 To ensure new development is sympathetic to the particular building and/or the Conservation Area in terms of siting, form, massing, articulation and detail composition.

O8 To ensure that the proposed form of roof and details the style, size, proportion and position of openings of windows and doors the colours, textures, style, size and type of finish of materials to be used on the exterior of building are compatible with similar

features and materials used in the existing building on the site and in the Conservation Area.

O9 To retain any horticultural or stylistic features of merit of the building, work or site, or the Conservation Area generally.

O10 To encourage the justified removal of structures or works which detract from the heritage significance of the particular building and/or the Conservation Area (non-contributory buildings or structures).

O11 To ensure that the integrity of existing contributory buildings and works within the Conservation Area is not diminished by total or partial demolition or by alterations and additions.

O12 To safeguard and document the pattern of development within the Conservation Area.

O13 To retain the subdivision pattern of the Hoskins Estate.

Provisions

Demolition (Partial or Total)

P1 Buildings or works which are considered, in the opinion of the Council, to contribute to the significance of the conservation area or its streetscape should not be demolished.

P2 Non-contributory buildings or works may only be demolished with Council approval, where their removal is supported through appropriate analysis as part of a Heritage Impact Statement

P3 Notwithstanding Provisions D1 and D2, demolition of an existing structure will not be permitted unless development approval has been achieved for a replacement structure, or for appropriate restoration, renovation or repair of the building, works or site.

Ground and First Floor Works (including attic additions)

P4 Architectural design elements shall be incorporated/integrated to avoid the creation of large plain wall surface areas.

P5 Alterations and additions shall be designed to complement the style of the existing dwelling and its setting, and not detract from the original and/or existing relationship of the building or works to the street.

P6 Alterations and additions that engulf the existing dwelling in terms of floor space are not appropriate in the Appian Way Conservation Area.

Roof Details

Advisory Note:
An important element in this Conservation Area is the alternating roof cladding of dwellings utilising slate and unglazed Marseilles pattern terracotta tiles.

P7 Roofs should maintain the pitch and (generally) asymmetric line of the existing roof, to consist of one major (hipped) section with secondary gables and hips.

P8 Small suitably designed gables and other repeated elements where justifiable, should reflect the proportions, detailing and form of the main gable.

P9 The use of turrets, spires, domes and towers, and dormer windows will be permitted only where they respect the existing dwelling and the streetscape. These elements are not to dominate the contextual form or setting of the existing building.

P10 Additions and extensions should not disrupt the roofline, nor dominate the front and/or side elevations. Roof forms of additions should be lower than the existing roof and differentiated from the original.

P11 Roof additions should not dominate that of the existing dwelling as viewed from the street and shall remain recessive, to be limited to appropriate roof elements which maintain the existing composition of the front façade.

P12 Extensions located to the rear of the dwelling should respect the form and balance of the existing rear part of the building and the layout of the garden. In some cases, say on larger lots, pavilion extensions would be acceptable.

P13 Upper floor extensions should be contained within the existing roofline, with roof forms of a high pitch (30 to 35 degrees) required to accommodate a proposed attic level. Such roof additions should access daylight from appropriately scaled dormer windows only where otherwise flat-in-plane window only should be provided.

P14 Other forms of alterations and additions, which do not satisfy Controls P7-P13, are unacceptable.

P15 Roofs of all residential buildings should be finished with either slates or unglazed Marseilles terracotta tiles, as appropriate, with roofs to be completed as a single entity. Patching of roof materials to be undertaken from rear to front and side elevations, with replacements occurring to the whole of the rear, as necessary, to allow existing material to be recycled for use on the side and front roof slopes.

Advisory Note:
Repairs to slate roofs is a specialist's job where colour, texture and material weight need special consideration. Patching with recycled materials may leave an undesirable "mottled" effect.

P16 New roofs should be sympathetic to the design and details of the existing house or structure.

P17 The following are typical roof details:

- Slate and unglazed terracotta tiles.
- Terracotta ridge cappings and ornaments (crests, finials) replicating the originals for tile and slate roofs.
- Original gable ends may accommodate shingles or rendered brickwork, either stucco or roughcast patterns.
- Rafter ends to roof eaves should be exposed.
- Guttering of half-round or ogee profile, with round downpipes.

P18 Skylights are not permitted to the main roof areas except on rear elevations where only one skylight per roof plane is permissible.

Chimney Details

P19 Chimneys should be retained in situ. Main fireplaces are not to be removed.

P20 The detailing and proportions of proposed chimneys should be sympathetic to existing chimney elements.

P21 Modern flues, exhausts and similar elements should generally be avoided and are not permitted on the front or side elevations of a dwelling house, or where they can be seen from the street.

Verandah Details

P22 New verandahs, simple or elaborate in decoration, should match existing in original detail. Appropriate details include:

- Verandahs supported by turned timber columns.
- Wide edges, generally finished with slate or marble slabs.
- Enclosed with low brick walls and/or timber balustrades.
- Verandah brickwork forming a plinth for the timber supports, either capped, with brick on edge or stone.
- Mosaic or tessellated tiling for the verandah floor surface.

P23 Columns, decorative timber brackets and valance boards (span column tops) should be retained and restored/reconstructed to remain as important elements for defining, by their position and spacing, particular features (entries, windows, verandah corners and gables).

Façade Details

P24 The external wall finish of a new addition to a dwelling should match that of the existing dwelling or be appropriate to that of original dwellings in the area. Note that the rear portions of buildings usually have less elaborate materials and details.

Window and Sunhood Details

P25 New windows for a dwelling are to match and complement original windows and should incorporate the following details:

- Vertical modules, either single and grouped in banks divided only by timber sashes and mullions
- The proportions of an opening rectangular window shall generally be a third as wide as it is tall (for a single window), with banking in these proportions for larger openings and for bay windows
- Window frames should be in wood and painted to match original paintwork
- Window types should respond to the existing detailing of the dwelling house.

P26 Aluminium framed windows will not be permitted. Original sunhoods should be retained, repaired or reinstated where necessary.

P27 Modern style external security roll-up metal screens or grilles are not appropriate to dwellings in the Appian Way.

Door Details

P28 Front doors should match existing and contain moulded recessed timber panels and leadlight/stained glass panels, together with sidelights and fanlights, to accentuate the prominence of the entry.

P29 Side or other doors, which are not the main entry, may be less elaborate, but should complement or match existing external doors.

P30 Security grille doors should not obscure the details of the main door and should not, when fitted, cause damage to the fabric of the dwelling.

Details of Material for Residential Dwellings and Associated Structures

P31 Original materials of the 1900-1920s period are to be used, or where these are not available, used and substitute materials of appropriate quality are encouraged. Applicants are to identify the source of appropriate materials with the Development Application and to supply samples for approval as part of the development assessment process. Tuck pointing and re-skinning of brickwork is inappropriate in this Conservation Area.

P32 Common brick/lime mortar should be used on rear/side walls.

Garage and Carport Details

P33 Garages and carports should be detached and preferably to the rear of the site, to reflect the particular site's originality with the scale and height to be secondary to the dwelling.

P34 Basic materials of construction, including colours and finishes, for garages and carports should be similar to that of dwelling houses, or other existing contributory original car sheds in the Conservation Area.

P35 Garages should incorporate simple metal or timber garage doors with small width slats or grooves. Decorative garage doors are not suitable in the Appian Way.

P36 Timber-posted carports with pitched roofs are to be designed appropriately. The pitch of such roofs is to be similar to that of the dwelling.

P37 Carports should not be enclosed nor be provided with doors.

P38 Driveway paving should reflect the garden setting of the existing dwelling, and incorporate the use of period garden design elements, i.e. gravel finishes, informal paving, brick edging single wheel driveway tracks.

P39 Driveway paving should be kept to a minimum in width and extent such that separate wheel tracks are not to exceed 0.4m in width.

Garden Shed and other Utility Building Details

P40 Garden sheds and other utility buildings should be located in the rear yard and should be as low and unobtrusive as possible.

P41 Preferred construction for such buildings is timber or fibre cement weatherboard with a galvanised iron roof.

Fence and Gate Details

P42 Properties which have full or partial (plinth and/or piers) brick front fencing should retain such elements.

P43 All other properties not subject to FG1 should incorporate timber picket front fencing, painted white or other appropriate light colour, on the front boundary as a feature of the Conservation Area.

P44 The style, height and material of fencing should reflect the original details predominant within the Conservation Area.

P45 Side path gates, letterboxes, lych gates, lighting and other street furniture or site facilities, visible from the street, should be appropriately styled to reflect original details relevant to the Conservation Area and not to detract from the heritage significance of the particular dwelling.

P46 Side fences to establish property boundaries are to be appropriately understated post and rail with wire mesh infill (no brick fences or any other structures are considered appropriate on or within 900mm of a common boundary including a rear boundary).

Advisory Note:
Post and rail with wire mesh infill side fence is typical of the original style of side fencing within the Appian Way, fashionable at the time. The intention of that type of fence is that it provides a real physical barrier between properties while maintaining an open feel. The wire mesh was often painted either dark green or black to increase that impression of space and is, from observation, in many examples covered with shrubs and creepers.

Landscaping/Garden Details

P47 A semi-formal design is generally appropriate for front and side gardens viewed from the street, with landscape plans to demonstrate:

- Well defined boundaries.
- Trimmed lawns (buffalo or couch).
- Edges and planting in neat beds.
- Shrubs and nominated shade trees located to complement the house.
- Appropriate plant material reflecting the species commonly available between 1900 and 1920 in the area.

P48 Pathways may divide the lawn area, lined with flowerbeds that should also line inside the front fence.

P49 Rear gardens may be more informal and functional to individual use with the planting of larger trees at the rear of the dwellings.

Advisory Note:
Particular guidelines on conserving and re-establishing a garden appropriate to a conservation area, together with plant types and a landscaping code, are available from the NSW Heritage Branch.

P50 A landscape plan shall be provided where alterations or additions to existing garden layouts or content are proposed. New planting shall correspond with details of original plant species and garden layouts typical of the period garden setting of the dwelling or, where more appropriate, the Conservation Area.

P51 Existing contributory trees, plants, garden layouts and garden features should be retained and incorporated within any development proposal.

P52 Not more than 30% of the site area should be built upon, hard paved etc.

P53 The trees in the nature strips form a significant visual element in the Conservation Area and should be properly protected and maintained appropriately.

Central Recreation Area and Pavilion Details

This area is important and is to be conserved as it is a key part of the significance of the Conservation Area.

P54 Any proposal to repair, renovate or otherwise develop or modify the recreation area and/or its weatherboard pavilion layout, structure, planting, or other fencing elements, including change of use, should be discussed firstly with the Council's Heritage Adviser, prior to the submission of a Development Application.

P55 The fencing, sports pavilion, surrounding landscaping and sports facilities are to be properly maintained as the primary focus of the estate.

Colours, External Finishes and other Decoration Details

P56 A full colour scheme should be provided with the Development Application, with colours selected to correspond to brick types, original paint types, shades and compositions which respect the period character of the existing building or work or, where more appropriate, the Conservation Area generally.

P57 Existing contributory details and decorations should be maintained and preserved.

P58 New details and decorations should reflect the original detailing and decoration of existing building or works, or where more appropriate, the Conservation Area generally.

P59 Unpainted surfaces of original buildings or works should not be painted, rendered, plastered or covered with any other material.

Subdivision Details

P60 The integrity of the original subdivision pattern of the Hoskins Estate should be preserved. Subdivision of existing allotments is contrary to the aims and objectives of the Hoskins Estate.

Dual Occupancy

P61 Detached dual occupancies are not appropriate to this Conservation Area.

P62 Any other form of dual occupancy development should conform to all the requirements of this DCP for the Conservation Area.

Additional Controls for New Development

P63 New dwellings will only be permitted to replace non-contributory dwellings within the Conservation Area.

P64 The major design form of a new building should be compatible with the Conservation Area. Buildings are to be asymmetrical in plan and massing and of single storey construction. The scale and style of new development should be in sympathy with the original stylistic development within the Conservation Area. Contemporary interpretation of existing dwelling styles is encouraged. Imitation style is not appropriate for new dwellings.

P65 Feature elements are necessary to avoid large blank façades, both to the street and on side elevations, and may include bay windows, verandahs, protruding gables, with hipped or gabled roof lines which exhibit variations in line but are generally well pitched (30-35 degrees).

P66 A new building should relate sympathetically to those neighbouring and in siting, form, massing, articulation and detail composition.

P67 The development should maintain existing views from neighbouring dwellings, achieve views of the Appian Way private recreation area and provide for retention of views of the rear gardens and trees between buildings.

P68 Non-residential buildings (garages, garden sheds, workshops, etc.) shall complement the proposed dwelling house for the site, with siting, scale, form, massing design and detailing typical of the Conservation Area.

P69 The removal of uncharacteristic or non-contributory buildings from the Conservation Area is generally encouraged.

P70 The existing or former front boundary setback should be maintained.

P71 Side boundary setbacks should be as generous as possible and relate to the original Hoskins Estate dwelling.

4.8.2 Malvern Hill

Background

The original Malvern Hill Estate in Croydon covers approximately 23 hectares of land south-west of Croydon Railway Station. The dominant features in the Malvern Hill Estate are the wide roads, tree lined footpaths and cohesive streetscapes with skyline broken by Federation and California Bungalow style roofs, gables and chimney stacks on dwellings and an intact shopping strip.

The topography of the area is gently sloping to flat. The land slopes downwards to the north, from Liverpool Road to Murray Street. David Street and Chelmsford Avenue run south-west to north-east down the slope so are, in effect, on the side of Malvern Hill. The slope does create some variation in the views and townscape, but a "hill" in itself is not pronounced.

The alignment of Malvern and Dickinson Avenues and The Strand is an example of an interesting road form, of curved rather than the traditional gridiron street pattern. The Strand maintains the purpose of a formal avenue, which leads to the residential streets.

The skyline is dominated by street trees and the features of the houses such as chimney stacks, gables, ridge capping and rooftops of the two storey houses.

Malvern Hill is generally a residential area with a shopping centre adjacent to Croydon Railway Station. The area is described by the National Trust of Australia (NSW) as:

"a distinctive, highly cohesive area of good quality Federation period houses and shops, street planning and planting in streets and gardens. The area is significant as an early planned 'model suburb' and is one of the first examples of the successful application of local government development controls".

The National Trust's conservation area is larger and extends across the eastern boundary of the Burwood LGA (Dickinson Avenue) into the Ashfield LGA. However, about 90 per cent of the conservation area lies in Burwood.

The street trees, especially those associated with the Federation period, contribute to the character of the area. Examples of the original plantings are found in Lea Street and Chelmsford Avenue.

In Lea Street, the palms Phoenix Canariensis (Canary Palms) line the road. Burwood Council, in 1912, pioneered the planting of the trees as other varieties such as Camphor Laurels, interfered with electricity wires. Originally the palms were located on the roadway, as was commonly seen around the Burwood and Ashfield areas.

A more detailed assessment of the significance of the Malvern Hill Heritage Conservation Area may be found at Appendix 8.6.

Objectives

O1 To conserve and enhance existing buildings, structures and works in the conservation area.

O2 To retain and reinstate the characteristic architectural, landscape and streetscape elements of the conservation area,

O3 Ensure that new development will safeguard the historic, cultural, social, architectural or aesthetic significance of the building, work or site.

O4 Ensure that new development will maintain the character and streetscape of the area.

O5 Ensure that the proposed form of roof and details the style, size, proportion and position of openings of windows and doors the colours, textures, style, size and type of finish of materials to be used on the exterior of building are compatible with similar features and materials used in the existing building on the site and in the conservation area.

O6 Retain any horticultural or stylistic feature of merit of the building, work or site, or the conservation area generally,

O7 To encourage the removal or reversal of components which detract from the heritage significance of the conservation area.

O8 To limit partial demolition such that it does not alter nor detrimentally affect the heritage significance of the particular building nor of the conservation area.

O9 To retain the cohesive appearance of the terraced commercial/retail premises within The Strand.

O10 To ensure that new built elements accommodate modern day living requirements for the residents, e.g. garages, and complement the integrity of existing buildings on the site, and the conservation area generally.

Provisions

Demolition Details (Partial or Total)

P1 Buildings or works which are considered, in the opinion of the Council, to contribute to the significance of the conservation area or its streetscape should not be demolished.

P2 Non-contributory buildings or works should only be demolished where their removal is supported through appropriate analysis as part of a heritage impact statement.

P3 Notwithstanding Provisions PI and P2, demolition of an existing structure should not be permitted unless development approval has been achieved for a replacement structure, or for appropriate restoration, renovation or repair of the building, works or site.

Layout

P4 Dwelling houses should be asymmetrical in plan and of single storey appearance as viewed from the street, and shall maintain the predominant building alignment from the front boundary. This control recognises, however, that there are a number of original two-storey dwellings in this conservation area.

P5 Outbuildings (garages, garden sheds, etc.) should relate to the dwelling with setbacks from the street for outbuilding(s) to reflect that of the street.

Ground and First Floor Addition Details

P6 Traditional architectural feature elements should be incorporated/ integrated to avoid the creation of large plain wall surfaces.

P7 Alterations and additions should be incorporated to complement the style of the existing building and its setting, and not detract from the original and/or existing relationship of the building or works to the street.

P8 Upper floor extensions should not interrupt the existing roof line. An original high-pitched roof suited to the building style may allow rooms at an attic level, with appropriately scaled dormer windows for light.

P9 Other forms of upper addition are generally out of character and/or given allotment size, prove to be overpowering and as such, are unacceptable.

Roof Details

P10 Roofs for Federation style dwellings should form one major (hipped) section with secondary gables and hips. Bungalow roofs are simpler in treatment. A-frame, mansard and Cape Cod type variations are not acceptable.



Roof Forms of a Federation Style Dwelling

P11 Small suitably designed gables or gablets and other repeated elements should reflect the proportions, detailing and form of the main gable.

P12 The use of turrets, spires, domes and towers, and dormer windows are permitted, where appropriate, as they break the roof form and add individuality, and are useful to reinforce a change in floor plan, a corner, verandah or entry. These elements are not to dominate the contextual form or setting of the existing building,

P13 Additions and extensions should not to have a roof line which dominates the front and/or side elevations of the dwelling nor be out of scale with those in the conservation area.

P14 Roof additions should not dominate the presentation of the existing dwelling as viewed from the street and shall remain recessive, to be limited to appropriate roof elements which maintain the existing composition of the front façade.

P15 Extensions located to the rear of the dwelling should respect the form and balance of the existing rear part of the building and the layout of the garden, and should incorporate the use of a skillion or simple hip roof treatment, with a demonstrably lower ridge height compared to that of the ‘main’ roof section of the dwelling to appear subservient to the form and balance of the main roof.

P16 Upper floor extensions should be contained within the existing roof line, particularly with existing roof forms of a high pitch (30 to 35 degrees) required to accommodate a proposed attic level. Such roof additions will capture sunlight from appropriately scaled dormer windows.

P17 Any lateral roof extension should be in a 'corrugated iron' clad skillion section or, if pitched, to have the ridge at a markedly lower level than that of the main existing roof form.

P18 Other forms of alterations and additions which do not satisfy Controls P10–P17 are considered to be generally out of character and unacceptable (other than skillion sections of dwellings or outbuildings).

P19 Roofs of all residential buildings should be finished with either slates or Marseilles terracotta orange tiles (unglazed), as appropriate, with roofs to be completed as a single entity. Patching of roof materials to be undertaken from rear to front and side elevations, with replacements occurring to the whole of the rear, as necessary to allow existing material to be recycled for use on the side and front roof slopes.



Unglazed Terracotta Tiles with Marseilles Profile (above) or Slate Roof (below)

Advisory Note:
Repairs to slate roofs is a specialist's job where colour, texture and material weight need special consideration, Patching with recycled materials may leave an undesirable "mottled" effect.

Roof Decoration Details

P20 Decoration and detail of new roofs should, where appropriate, be designed and detailed to match the design and details of the existing house or other contributory houses in the conservation area.

P21 The following list includes typical roof details:

- Terracotta ridge cappings and ornaments (crests, finials) are appropriate for tile and slate roofs.
- Original gable ends may accommodate shingles (oiled or painted) or rendered brickwork, either stucco and roughcast patterns.
- Rafter ends to roof caves are to be exposed, but shall maintain a minimal overhang.
- Guttering shall be of half-round or ogee profile, with downpipes to be round in profile.
- Skillion roofs at the rear of dwellings should be clad in corrugated iron/Custom Orb.

Chimney Details

P22 Chimneys should be retained in situ, where possible, to be supported on beams within the roof if fireplaces are required to be removed. Main fireplaces are not to be removed.

P23 The detailing and proportions of proposed chimneys of a dwelling should match existing chimney elements of that dwelling, or of a complementary dwelling in the conservation area.

P24 Modern flues, exhausts and similar elements should generally be avoided and are not permitted on the front or side elevations of a dwelling house, or where they can be seen from the street.

Verandah Details

P25 New verandahs, both simple and elaborate in decoration, should match existing feature in original detail as well as be appropriate to the architectural style of the dwelling. Appropriate details include:

- verandahs supported by turned timber column supports
- full open edges, generally finished with slate or marble slabs for Federation style dwellings
- partial enclosure with low brick walls and/or timber balustrades or stone/ brick
- verandah brickwork forming a plinth for the timber supports, either capped, with brick on edge or stone, and/or
- mosaic or tessellated tiling for the verandah floor surface.

P26 Columns, decorative timber brackets and valance boards (spanning column tops) should be retained and restored/ reconstructed, to remain as important elements for defining, by their position and spacing, particular features (entries, windows, verandah corners and gables).

P27 Verandah covering, if not integral with the 'main' roof of the building, should be of corrugated iron form.



Verandah Details

Façade Details

P28 The external wall finish of a dwelling should match that of the existing dwelling or be appropriate to that or original dwellings in the area and incorporate the following details:

- smooth face brickwork, in red to brown, purplish
- rough cast and stonework under bay windows
- horizontal courses of darker brickwork and tuck pointing, to highlight façades
- and/or tuck-pointing and brick banding.

P29 Any bay window to the side elevation to a side street on a corner lot should be appropriately scaled, have windows of proper proportions, not exceed one in number and be preferably adjacent to a front or rear 'wrap around' verandah.

Window and Sunhood Details

P30 New windows for a dwelling are to match and complement original windows and shall incorporate the following details:

- vertical modules, either single and grouped in banks divided only by timber sashes and mullions
- the proportions of an opening rectangular window shall generally be a third as wide as it is tall (for a single window), with banking in these proportions for larger openings and for bay windows
- window frames should be in wood and (or suitable wood lookalike construction) painted in colours to match originals. Stained woodwork is not suitable

- windows types shall be appropriate to the existing detailing of the dwelling house

P31 A feature of the majority of the original dwellings is a lack of side window to the front rooms and, as such, this feature should be retained.

P32 Sunhoods on Federation dwellings generally utilise a wooden frame with either tile, slate or wood shingle covering, usually consistent with the roofing material.

Door Details

P33 Front doors shall match existing and may contain moulded recessed timber panels and leadlight/stained glass panels, together with sidelights and fanlights to accentuate the prominence of the entry.

P34 Side or other doors, which are not the main entry, may be less elaborate.

Material Details for Residential Dwellings, Shops and Commercial Premises and Associated Structures

P35 Original materials of the 1900-1920s period are to be used, or where these are not available, second hand or substitute materials of appropriate quality are encouraged where they do not alter the 'heritage' look of the completed building element. Applicants are to identify the source of appropriate materials with the Development Application and to supply samples for approval as part of the development assessment process.

Garage and Carport Details

P36 Carports should be located behind the front alignment of and adjacent to the dwelling house or to the rear of the site, to reflect the particular site's originality.

P37 Garages should be located at the rear of the site and should not dominate the dwelling on the site nor those adjoining and nearby. These structures should be recessive in their design outcome.

P38 Basic materials of construction, including colours and finishes, for garages and carports are to be similar to that for dwelling houses, shops and commercial premises, or other existing original car sheds in the conservation area.

P39 Metal roller garage doors are not suitable for garages that face the street. It is preferred that garages incorporate either:

- timber bi-fold or swing doors, or
- appropriately styled timber faced tilt doors of which such doors should be of a dark heritage colour, where appropriate.

P40 Timber-posted carports with pitched roofs should be designed to be as discrete as possible and positioned singly and behind the adjacent main building external wall or added to an existing single garage,

P41 Carports should not be enclosed nor be provided with doors.



Garages to be Located to the Rear of the Dwelling

P42 Driveway paving should reflect the garden setting of the existing dwelling and incorporate the use of period garden design elements, i.e. gravel finishes, informal paying, brick edging, etc.

P43 Garages and carports on corner sites should be located at the rear of the rear yard and should not be forward of the building line of the adjacent dwelling.

Fence and Gate Details

P44 The style and height of front and side return fencing should reflect the original details and characteristics within the Malvern Hill Estate, such as:

- timber picket
- low brick with or without metal pipes or wrought iron work
- low brick with stone capping and base
- post and rail with cyclone wire infill for side return fencing.

P45 Gates, letterboxes, lighting and other street furniture or site facilities, visible from the street are to be appropriately styled to reflect original details and characteristics relevant to the Malvern Hill Estate.

P46 Side fences (behind the building line, except for corner lots) and rear fences should be formed by up to 1.8m high wooden palings.

P47 Side return fences on corner properties should be of the same height and form (facing the side street) as the front fence up to a point towards the rear of the dwelling where the skillion section commences (or would normally commence).

P48 The rear section of the side fence on a corner site facing the side street should be 1.8m high paling fencing.

Landscaping/Gardens Details

P49 A formal design is appropriate for front and side gardens viewed from the street, with landscape plans to demonstrate:

- well defined boundaries
- trimmed lawns (preferably buffalo or couch)
- edges and planting in neat beds
- shrubs and shade trees, as features, located to complement the setting of the dwelling house.



Landscaping and Garden Details – Formal Front Gardens

P50 Pathways and flowerbeds may divide the lawn area.

P51 Rear gardens may be more informal and functional to individual use.

P52 A landscape plan should be provided where alterations or additions to existing garden layouts are proposed. New planting should correspond with details of original plant species and garden layouts typical of the period garden setting of the dwelling or, where more appropriate, the conservation area.

P53 Existing contributory trees, plants, garden layouts and garden features should be retained and incorporated within any development proposal.

Colours, External Finishes and Other Decoration Details

P54 A full colour scheme should be provided with the Development Application, with colours selected to correspond to paint types, shades and compositions which respect the period character of the existing building or work or, where more appropriate, the conservation area generally.

P55 Existing contributory details and decorations should be maintained and preserved.

P56 New details and decorations should reflect the original detailing and decoration of existing building or works, or where more appropriate, the conservation area generally.

P57 Unpainted surfaces such as brick or stone work of original buildings or works should not be painted, plastered or covered with any other material.

Subdivision Details

P58 The integrity of the original subdivision pattern of the Malvern Hill Estate should be preserved. Subdivision of any type is generally discouraged. Strata subdivision is not permitted.

Dual Occupancy Details

P59 Detached dual occupancies are not deemed appropriate to this Conservation Area.

P60 Any other form of dual occupancy development should conform to all of the BDCP requirements for this Conservation Area.

P61 Strata subdivision of dual occupancies is not permissible within the Conservation Area.

Additional Controls for New Development

P62 The major design form of a new building should be compatible with the conservation area such buildings generally should be asymmetrical in plan and massing. The scale and style of new development should depict and reflect that of the predominant stylistic features within the Conservation Area.

P63 Feature elements are necessary to avoid large blank façades, both to the street and on side elevations, and, in residential development, may include bay windows (within limits), verandahs, protruding gables, with hipped or gabled roof lines which exhibit variations in line but are generally well pitched in accordance with their architectural style.

P64 A new building should relate sympathetically to the street and the adjoining buildings.

P65 Ancillary buildings (garages, garden sheds, workshops, etc) should complement the proposed main building for the site, with design and detailing typical of the conservation area wherever possible, and particularly where they are visible from the street.

P66 The removal of uncharacteristic or unsympathetic ancillary buildings from the conservation area is generally encouraged.

P67 Garages and carports on corner sites should be located at the rear of the rear yard and should not be forward of the building line of the adjacent dwelling.

The Strand Shopping Centre

Advisory Note:
This section additionally applies to buildings and uses on the east and west sides of The Strand shopping centre, Croydon. It establishes principles and provides guidelines for façade alterations only to existing buildings within The Strand shopping centre. It is additional to other provisions for heritage in centres contained in Section 3.8.

P68 Preservation, reinstatement and maintenance of original façades and shopfronts is required.

P69 To achieve appropriate development to the original façades and shopfronts within The Strand, proposals shall satisfy the following aims:

- Preserve and maintain original parapets, with existing detailing, unpainted and free of hoarding and signs.
- Restore and maintain original upper level windows, with alternatives, being sympathetic in scale and proportion.
- Replacement downpipe and guttering to be circular in section.
- Retention of continuous awning at unified heights and fascia to each shop.

P70 First floor balconies should remain open, as important functional and architectural elements of the front façade. Enclosure of balconies will only be permitted if compatibility with original window types can be demonstrated.

P71 Rear elevations and structures are to be treated and maintained in a manner that is of quality and character appropriate to The Strand and its controls.

P72 The profile of the front parapet wall should be maintained as a silhouette against the sky.

P73 The removal of first floor windows that have altered the profile of former openings is encouraged, with the original window to be restored.

P74 The level of overhead awnings above footpath level should match existing.

P75 Overhead awnings shall be of a uniform depth and form to match that predominant within the terrace group, with timber fascia and gutter to be maintained or reinstated on buildings that originally featured a timber fascia, where appropriate.

P76 New shopfronts shall reflect original details and proportions, including the siting of recessed entrance doors.

P77 Gable ends to the roof above eaves level should retain their existing details, where present.

P78 The symmetry about the central shop within each group of three shops shall be maintained, in particular at eaves level, in roof pitch and ridge level.

P79 Visible pitched roofs shall be finished in slate or unglazed “Marseilles” terracotta tiles.